GLOBAL BUSINESS SOLUTIONS
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GBS PROCESS FLOW

Resourcing — Recruitment, Selection and Assessment Process Flow

EEA 55 of 1998 (as amended 2022) · EE Regulations & Sectoral Targets 2025 · LRA · BCEA · ESA s.8 · Immigration Act 13 of 2002 · AARTO Act 46 of 1998 · POPIA · As at 19 October 2026

PREPARED FOR
[Client / Team]

PREPARED BY
Global Business Solutions

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v2.0

DOCUMENT STATUS

Working document for legal review — not legal advice.

LAW = in force; Code = code of good practice; CL = case law; DRAFT = not in force; BP = best practice.

01 / RECRUITMENT AND SELECTION PROCESS

Purpose, status and reading notes

This flow tells an organisation what to do, by when, and who hands off to whom, from the moment a line manager raises a vacancy until the appointee has passed probation, the recruitment file is archived and the results feed back into the EE plan. It covers internal and external recruitment, promotions and succession appointments, and four ways of engaging the person chosen: permanent employment, a fixed-term contract, a TES placement, or the employment of a foreign national.

Version 2.0 supersedes the GBS Resourcing — Organisational Recruitment and Selection Process Flow (v1, 30 September 2026). It keeps the v1 spine (Phases 0–6, the three designation paths, the three EE application models, forms RS01–RS42 and the verification register) and adds four **variable gates**. Each gate is answered and signed at step 1.11, before anything is published, and each opens a dedicated module with its own steps, forms and watch-points:

- **Gate A — Foreign nationals** (Module A, section 10): could the appointee be a person who is not a South African citizen or permanent resident?
- **Gate B — EE plan targets and deviations** (Module B, section 11): is an EE target at stake at this occupational level, and might the outcome depart from it?
- **Gate C — Driving roles and AARTO** (Module C, section 12): will the appointee drive or control a vehicle for the employer?
- **Gate D — AI in recruitment** (Module D, section 13): will any AI or automated tool source, screen, rank, interview, assess or communicate with candidates, or draft the advert?

The flow runs one spine for every vacancy and splits where the law splits: at the designation decision (open, preferential or succession-linked post), at the variable gates, and at the engagement type. It assumes no collective agreement or bargaining council agreement regulates recruitment or promotion; where one does, it prevails and this flow must be adjusted. Public-service employers must also apply the Public Service Act and Regulations, which are not covered here.

Who uses it. HR and talent acquisition (the process owner), line managers, EE managers, selection panels, delegated authorities, fleet managers (Module C), IT and AI system owners and the Information Officer (Module D), and legal or immigration advisers (Module A), in South African private-sector employers.

Legal status — employment equity. The Employment Equity Amendment Act 4 of 2022 has been in force since 1 January 2025. Designated employers are employers with 50 or more employees, organs of state, municipalities and employers designated by a collective agreement. The Employment Equity Regulations, 2025 (GN 6125, GG 52515) and the Determination of Sectoral Numerical Targets (GN 6124, GG 52514) were published on 15 April 2025; the 2025 Regulations repealed the EE Regulations, 2014. The targets cover 18 sectors, the four upper occupational levels and a 3% target for persons with disabilities. EE plans for 1 September 2025 to 31 August 2030 must align with them (s.20(2A)). The NEASA and Sakeliga urgent application to suspend the targets (Part A) was dismissed by the High Court on 28 August 2025; leave to appeal was refused by the High Court (16 October 2025), the SCA (13 March 2026) and the Constitutional Court (reported 31 May–1 June 2026). Their non-urgent constitutional review (Part B), the BUSA review of the targets (filed September 2025) and the DA challenge are pending. A search on 19 October 2026 found no order suspending or setting aside the targets; the Department continues to implement them. The 2026 reporting cycle (online: 1 September 2026 to 15 January 2027) is the first in which progress against annual targets is assessed.

Legal status — foreign nationals. The Immigration Act 13 of 2002 (s.38: no employment of an illegal foreigner or of a foreigner outside the terms of their status; s.49(3): offences), the Immigration Regulations, 2014 as amended (points-based assessment for general work and critical skills visas since 9 October 2024), the Critical Skills List (GN R3934, GG 49402, 3 October 2023, still operative; no new list was published in 2026), the Refugees Act 130 of 1998 as amended (s.22: asylum seekers may work only if the right is endorsed; employer letter within 14 days) and Employment Services Act 4 of 2014 s.8 are in force. The **Employment Services Amendment Bill [B16-2026] is DRAFT ONLY**: it is before Parliament and public comment closes on 6 November 2026. Module A includes a readiness note; a standalone GBS Foreign National Compliance flow is **planned** for when the Bill is final.

Legal status — AARTO. Proclamations 322 and 323 of 2026 (GG 54917 and 54918, 29 June 2026) brought the operative AARTO provisions and most of the Amendment Act into force on 1 July 2026 in 62 municipalities (the 60 in Annexure A plus Johannesburg and



Tshwane), with the AARTO Regulations, 2026. Phase 3 (about 151 further municipalities) has not been proclaimed: no Phase 3 proclamation had been gazetted as at 19 October 2026. On 4 August 2026 the RTIA told Parliament it expects Phase 3 in March 2027 (an earlier RTIA annual performance plan had pointed to October–December 2026). Until a proclamation is gazetted, only the 62 municipalities in Annexure A to Proclamation 323 of 2026 follow AARTO, and the AARTO duties in this flow (including s.17(5)) are law only there; elsewhere the Criminal Procedure Act regime continues and the same driver controls are best practice (GBS AARTO flow v1.1). Re-check at each 6.8 review. The demerit system (ss.24–28) and rehabilitation have **not** commenced; they are expected in a later phase with no date set.

Legal status — AI. South Africa has no AI statute. The draft National AI Policy published for comment on 10 April 2026 was withdrawn on 26 April 2026 after fictitious citations were found (DLA Piper, 4 May 2026). POPIA s.71 (no decision based solely on automated processing) applies to AI screening, and the EEA s.8 duties apply to AI assessments that work like psychological tests. The Information Regulator has issued no s.71 or AI guidance as at 19 October 2026 (search).

Figures in force today. BCEA earnings threshold: **R269 600.90 a year from 1 May 2026** (previously R261 748.45). It decides who is protected by LRA ss.198A–198B and who may take an EEA s.10 dispute to CCMA arbitration. National minimum wage: **R30.23 an hour from 1 March 2026** (separate EPWP and learnership rates apply; verify the current figures before use). Points-based visa income bands as published in October 2024: 50 points above R976 194 a year, 20 points from R650 976 to R976 194 (GN 5448 of 2024; verify any later adjustment).

Labels used throughout.

- **LAW** = a statute or regulation in force (EEA, LRA, BCEA, ESA, Immigration Act and Regulations, Refugees Act, AARTO Act and Regulations in proclaimed areas, NRTA, POPIA, PAIA, NCA and its Regulations, NQF Act, Children's Act, Criminal Law (Sexual Offences) Amendment Act, Health Professions Act). Binding now.
- **Code** = a code of good practice: the Code on the Integration of EE into HR Policies and Practices (2005), the Code on the Employment of Persons with Disabilities (GN 1085, 9 November 2015) and the Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294, in force 4 September 2025; Schedule 8 repealed). Must be taken into account; departures must be justified.
- **CL** = a principle from case law, cited by name, court and year. Verify the citation and any later authority before using it in advice. Non-reportable judgments are marked.



- **DRAFT** = a Bill or draft instrument not in force: the Employment Services Amendment Bill [B16-2026], the Draft Reviewed Code of Good Practice on the EE Plan (GN 7719, GG 55046), the Revised White Paper proposals on immigration, and the AARTO demerit provisions (enacted but not commenced). Build readiness; do not treat as a current legal duty.
- **BP** = best practice or internal control; not a statutory deadline. Adopt it as policy so it becomes binding internally. All weights, thresholds and periods marked BP are recommendations to be calibrated to each client.

Design principle. In a recruitment dispute the employer carries the burden. Once an applicant alleges discrimination on a listed ground, the employer must prove that the conduct did not take place, was rational and not unfair, or was otherwise justifiable (EEA s.11). The 2025–2026 case law shows that employers lose mainly because EE considerations were brought in late, applied rigidly, or an approver overrode a panel without contemporaneous reasons. Version 2.0 applies the same rule to the four variables: every decision about right to work, EE targets and deviations, driving checks and AI tools is taken, recorded and signed **before** the vacancy goes to market (step 1.11, form RS60), and every later step leaves a record made at the time. That record is also the evidence for the Regulation 16(5) grounds, for a s.53 compliance certificate, for the Immigration Act s.38(2) good-faith defence and for POPIA accountability.

Fourteen interpretation points that shape the flow.

- **Applicants are protected, but only by part of the law.** For EEA ss.6, 7 and 8, "employee" includes an applicant for employment (s.9). LRA s.5(2) protects persons seeking employment against interference with union and LRA rights. An external applicant is not an "employee" for the unfair labour practice in LRA s.186(2)(a); only existing employees can claim an unfair promotion. External candidates therefore sue under the EEA, where the employer carries the onus.
- **Affirmative action is a defence, not a licence.** Measures consistent with the EEA's purpose are not unfair discrimination (s.6(2)(a)), but they must flow from a current, consulted EE plan and be applied rationally and fairly (Constitution s.9(2); CL: *Minister of Finance v Van Heerden*, CC 2004; *SAPS v Solidarity obo Barnard*, CC 2014; *Solidarity v Department of Correctional Services*, CC 2016). A lapsed or unconsulted plan removes the defence.
- **No quotas and no absolute barriers.** Affirmative action measures include preferential treatment and numerical goals but exclude quotas (s.15(3)); a designated employer need not create an absolute barrier to people outside the designated groups (s.15(4)). Non-designated applicants must still be able to be considered. A rational pipeline tied to EE targets is a lawful restitutionary measure, and shortlisting within it is not an absolute barrier where others can still be motivated and considered (CL: *Eskom Holdings v Solidarity obo Erasmus* [2025] ZALAC 55, LAC, 5 November 2025, overturning the Labour Court).



- **"Suitably qualified" is broad.** Formal qualifications, prior learning, relevant experience, or the capacity to acquire the ability to do the job within a reasonable time, considered together; no unfair discrimination solely on lack of relevant experience (s.20(3)–(5)). Every person specification must state equivalents, not only minimums.
- **Timing decides lawfulness.** Preference introduced after interviews, with no plan behind it, is unfair discrimination (CL: *Moses Kotane Institute v Mzimele*, LAC 2026). Using targets as the sole reason to reject the panel's top candidate, where no suitable under-represented candidate was realistically available, is irrational and unfair (CL: *Solidarity obo Benjamin v Department of Correctional Services*, LC, June 2026, non-reportable: 12 months' compensation). The designation, the EE model and the deviation route are therefore fixed in Phase 1.
- **The correct target set.** Annual targets must align with the s.15A targets for the employer's sector (the sector in which most employees are engaged, Reg 9(7)(c)), and the Impact Note must use the target set the plan actually uses: national, regional or plan-specific. *Benjamin* turned partly on national figures being applied where the plan also set regional targets. Where a group already exceeds the EAP, avoid perpetuating the over-representation (Reg 9(10)).
- **Deviations are lawful if structured in advance.** Targets are not quotas; a designated employer may appoint outside the target direction where no suitably qualified target-group candidate is appointable, provided the deviation is motivated, approved at the pre-set level, recorded and reported (Reg 16(5); Module B). An unrecorded deviation is evidence against the employer in an EE assessment; an unjustified refusal to deviate is evidence against it in a *Benjamin*-type claim.
- **Promotions: a fair process, not a right.** No right to be promoted, but a right to a fair and rational process that follows the employer's own policy (LRA s.186(2)(a); CL: *Noonan v SSSBC*, LAC 2012; *Head of Department of Education v Mofokeng*, LAC 2014). Acting in a post confers no right to it (CL: *Hlope v HOD: Education KZN*, LC 2024, verify).
- **Acceptance can create employment.** A person who has accepted an offer but not started may already be an "employee"; withdrawing the offer can be a dismissal (CL: *Wyeth SA v Manqele*, LAC 2005). Offers are therefore always expressly conditional, including on a valid visa (Module A) and a valid licence and PrDP for driving roles (Module C).
- **Testing is regulated twice.** Medical testing is prohibited unless legislation permits or requires it or it is justifiable (s.7(1)); HIV testing needs a Labour Court order (s.7(2)). Psychological and similar assessments must be scientifically shown to be valid and reliable, capable of fair application to all employees, and not biased (s.8(a)–(c)). The HPCSA certification requirement (former s.8(d)), which *Association of Test Publishers v President of the RSA* (GNP 2017) found unworkable, was deleted by the Employment Equity Amendment Act 4 of 2022 with effect from 1 January 2025; the employer bears the onus on (a)–(c), and HPCSA classification and practitioner rules still apply to psychological tests.

- **A human decides.** A candidate may not be subjected to a decision with legal consequences, or which affects them to a substantial degree, based solely on automated processing that profiles them, unless a s.71(2) exception applies with appropriate measures: an opportunity to make representations and enough information about the logic to make them meaningful (POPIA s.71(3)). AI video, game and chatbot scoring of personality or ability is also a "similar assessment" under EEA s.8 (Module D).
- **Right to work is a gate, not a preference.** No employer may employ a foreign national before the person produces a valid visa or permit authorising that work (ESA s.8(1); Immigration Act s.38(1)), and the employer must make a good-faith effort to check (s.38(2)). Citizenship is part of the designated-group test: only black people, women and people with disabilities who are South African citizens by birth or descent, or who were naturalised before 27 April 1994 (or later, if apartheid policies prevented earlier naturalisation), are "designated groups" (EEA s.1). Foreign nationals, permanent residents and other post-1994 naturalised citizens do not count towards EE targets, so appointing one to a preferential post is a deviation (Module B). Excluding permanent residents is high-risk (CL: *Larbi-Odam v MEC for Education (North-West Province)*, CC 1997).
- **Driving checks follow the job, not the person.** Licence, PrDP and AARTO checks are justified only where driving or controlling a vehicle is an inherent requirement identified at job analysis, and only at final-candidate stage with notice and consent. Demerit points cannot be used because the system has not commenced; an outstanding AARTO enforcement order matters because it blocks the issue of a licence or PrDP until resolved (AARTO Act s.20(5)) (Module C).
- **Foreign workers without papers are still employees.** A contract with a foreign national who lacks a valid visa is not void for LRA purposes; the worker may still claim (ESA s.8(4); CL: *Discovery Health v CCMA*, LC 2008). A lapsed visa is a reason to stop the work lawfully, not to ignore fair procedure.

Roles used. Talent Acquisition / HR recruiter (TA, the process owner and spine); Line Manager (LM, the hiring manager); EE Manager (EEM, the senior manager assigned under s.24); EE / Consultative Forum (EEF); Selection Panel (PNL) and its Chair (CHR); Subject-matter Expert (SME); Talent Committee (TC); Delegated Authority (DA); Executive Committee or CEO (EXCO); Legal / IR (LA); Immigration adviser or registered practitioner (IMM); Information Officer (IO, POPIA); AI System Owner (AIO, the business owner of each AI tool); IT / ATS owner (IT); Fleet Manager (FM); AARTO Compliance Officer (ACO, from the GBS AARTO flow); registered Psychologist or Psychometrist (PSY); Occupational Health Practitioner (OHP); Payroll and Finance (PAY, FIN); Board (BOARD). Candidates (CAND), including internal candidates (INT), the succession candidate (SUC) and foreign-national candidates (FNC); union observer where a collective agreement provides (UO). External: private employment agency (AGY); temporary employment service (TES); verification vendor (VV); AI vendor (AIV); SAQA and the NLRD; SAPS Criminal Record Centre; credit bureaus; professional bodies; Department of

Home Affairs (DHA); Department of Employment and Labour and ESSA (DEL); Road Traffic Infringement Agency (RTIA) and eNaTIS; driving licence testing centres (DLTC); CCMA; Labour Court (LC); Information Regulator (IR).

Master flow at a glance

Every vacancy enters through Phase 1. The designation decision (step 1.9) fixes the path; the variable gates (step 1.11) fix which modules run. Advertising (Phase 2) differs by path and by gate; screening, assessment, interview and scoring (Phases 3 and 4) are common to all paths, and the EE step at the end of Phase 4 applies the model fixed at Phase 1. Offer and contracting (Phase 5) split again by engagement type. The four modules are not phases: each runs alongside the spine from step 1.11 and plugs into named steps in Phases 2 to 5. The disputes and complaints track opens when the advert is published and runs until the last referral window closes.



One recruitment spine, four variable gates, four modules running alongside

Gates are answered at step 1.11 before anything is published; a "yes" opens the module, which then feeds steps in Phases 2 to 5 (dashed lines)

Phase 0 · Readiness (standing obligations)
EE plan 2025–2030, policy, delegations, tool and AI registers, driver and right-to-work rules

Phase 1 · Vacancy, job analysis and designation
Impact Note, inherent requirements, s.20 equivalents, path (a) open · (b) preferential · (c) succession

Step 1.11 · Variable gates (all four answered and signed on RS60)
Gate A · Could the appointee be a foreign national?
Gate B · Is an EE target at stake, or a deviation likely?
Gate C · Will the appointee drive or control a vehicle?
Gate D · Will any AI or automated tool touch candidates?

Phase 2 · Sourcing, advertising and applications
Advert fixes requirements, EE wording, right-to-work, driving and AI notices

Phase 3 · Screening, verification and assessment
Two screeners, human review of any tool, consent-based checks, s.8 assessments

Phase 4 · Interview, scoring and the EE decision
Threshold, pre-set EE model, Selection Report, deviation or approval with reasons

Phase 5 · Offer, contracting and onboarding
Conditional offer; tracks 5A permanent · 5B fixed-term · 5C TES · 5D foreign national

Phase 6 · Governance, reporting and learning
Funnel and adverse-impact audit, EEA2/EEA4, Reg 16(5) file, deviation register

Lessons from each vacancy loop back into Phase 0

Module A · Foreign nationals
Immigration Act ss.38, 49 · ESA s.8 · Refugees Act s.22
Advert → right-to-work check → Track 5D

Module B · EE targets and deviations
s.15A targets · Reg 16(5) · s.20(3)–(5)
Pool analysis → model → Deviation Motivation

Module C · Driving roles and AARTO
Inherent requirement · eNaTIS · AARTO s.17(5)
Consent → licence/PrDP → driver onboarding

Module D · AI in recruitment
POPIA ss.18, 71, 72 · EEA s.8
Register → human review → adverse-impact test

Parallel track · Disputes, complaints and regulators (P1–P14)
Opens when the advert is published; runs until the last EEA (6 months), ULP (90 days) or dismissal (30 days) window closes

Figure 1 reads top to bottom. The blue box is the only new gate on the spine: it does not delay a vacancy that answers "no" to all four questions, but it forces the answer to be written down before the advert. The dashed lines show where each module plugs back into the spine; section 2's gate table below lists the exact steps.

The four variable gates and where they plug in

Gate	Question at step 1.11	Phase 2 (advert)	Phase 3 (screening, checks)	Phase 4–5 (decision, offer)	Onboarding and after
A Foreign nationals	Could the appointee be a non-citizen without permanent residence?	Right-to-work statement; local-search record starts (A.2–A.3)	Status question at application; visa or permit check at shortlist (A.4–A.5)	Sponsorship decision; offer conditional on valid visa; Track 5D (A.6–A.8)	Asylum letter in 14 days; expiry diary; EEA2 foreign-national count (A.9–A.12)
B EE targets and deviations	Is a target at stake at this level, or is a deviation likely?	Preference wording; targeted channels (B.6)	Designated-pool check before interviews; re-source decision (B.7)	Pre-set EE model; Deviation Motivation and tiered approval (B.8–B.11)	Deviation register; Reg 16(5) file; EEA2/EEA4 (B.12–B.14)
C Driving roles	Will the appointee drive or control a vehicle, and is that inherent?	Licence code and PrDP stated as inherent requirements; checks disclosed (C.3)	Licence held (self-declared) at screening; licence, PrDP and AARTO status at final stage with consent (C.4–C.7)	Offer conditional on valid licence and PrDP; enforcement order resolved (C.8)	Driver particulars before first drive; AARTO flow steps 0.5–0.7 (C.9–C.11)
D AI in recruitment	Will any AI or automated tool touch candidates or the advert?	AI-drafted advert reviewed; AI notice in privacy notice (D.4–D.5)	Human review before any rejection; s.71 log (D.6–D.8)	No AI-only ranking in the Selection Report; adverse-impact check at calibration (D.9)	Annual adverse-impact audit; vendor review; records (D.11–D.12)

The four variable gates at step 1.11

Each gate is answered and signed before the advert. "Yes" routes to the module; every "No" is recorded too.

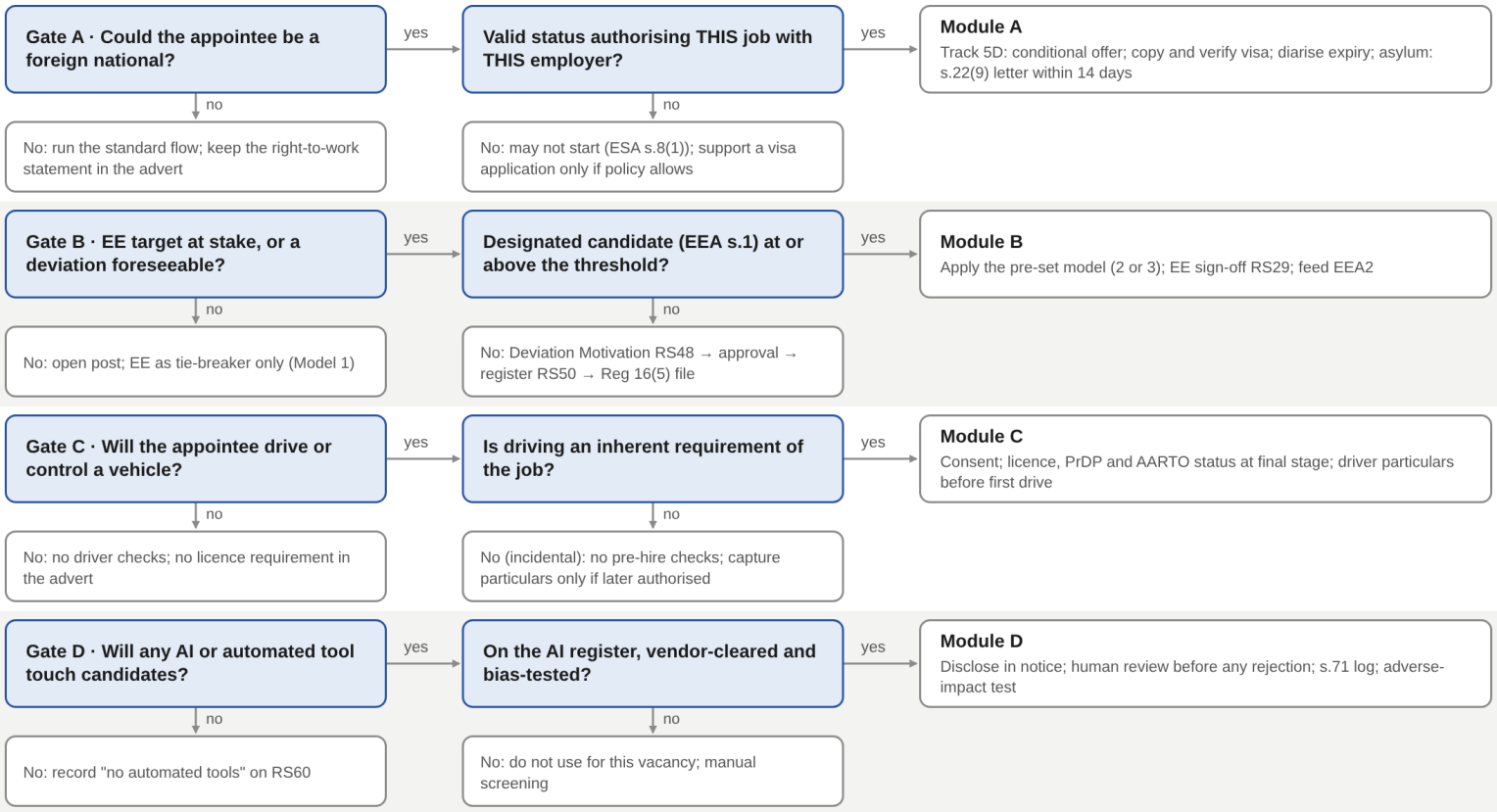


Figure 2 shows each gate as two questions. The first decides whether the module opens; the second decides the route inside it. Every "no" is recorded on RS60 too, because the absence of a foreign-national check, a driver check or an AI tool must be as deliberate as its presence.

The three designation paths compared

Stage	(a) Open post	(b) Preferential post (designated groups)	(c) Succession-linked post
Trigger (1.3)	Impact Note shows target met or neutral at that level	Impact Note shows under-representation at that level against annual or sectoral targets	Succession register shows a ready-now or ready-soon successor
Designation (1.9)	TA and EEM sign-off	EEM written motivation tied to specific targets and a pool analysis (RS49); EEF informed; DA approves	TC record of how the successor was identified; EEM comment; policy authorises ring-fencing or direct appointment
Advertising (2.1–2.4)	Concurrent internal and external; standard EE statement	Concurrent plus targeted channels; "preference will be given to suitably qualified..."	Internal ring-fenced for 5–10 working days if policy allows, then external; successor applies and is assessed like everyone else
Screening (3.1–3.4)	Minimums plus s.20 equivalents	Same; EEM checks designated pool and may trigger targeted re-sourcing before interviews	Same; all eligible internal applicants long-listed
Scoring and EE step (4.5–4.7)	Merit; EE as tie-breaker (Model 1)	Merit to threshold, then preference among the appointable (Model 2)	Merit to threshold; development appointment with a plan (Model 3)
Decision (4.9–4.12)	Panel → DA	Panel → EE sign-off → DA; Deviation Motivation (RS48) if no designated appointable candidate	Panel → EE sign-off → DA; record why the successor was or was not appointed
Key risk	Late EE reasoning (CL: *Moses Kotane*)	Rigid targets, wrong data set, no pool analysis (CL: *Benjamin*)	Sham process or denial of a fair opportunity to compete (CL: *Noonan*; *Hlope*)

Integrated swimlane view

Who does what, phase by phase

Read a column top to bottom for hand-offs; read a lane left to right for one party's whole job. Blue cells are variable-gate work.

	Phase 0 Standing	Phase 1 Days 0–8	Phase 2 Days 9–20	Phase 3 Days 21–35	Phase 4 Days 35–50	Phase 5 Day 52 to start	Phase 6 Ongoing
Line manager		Requisition; declare internal candidate		Shortlist input; work sample	Interview; feedback to internal	30/60/90 reviews; probation	
Talent acquisition / HR (spine)	Policy, registers, notices, delegations	Grade, file, gates sheet RS60	Advert, channels, register	Screen, consent, checks	Calibrate; Selection Report	Conditional offer; contract	Funnel; file close
EE manager	EE plan; target set; sector	Impact Note; designation; Gate B	Targeted channels	Pool check before interviews	EE sign-off or Deviation		Deviation register; EEA2/EEA4
Panel and delegated authority		DA approves designation			Score; approve with reasons	Approve offer above band	
Legal / immigration (Module A)	Right-to-work rules	Gate A record	Right-to-work notice; local search	Visa / permit check	Visa re-check before offer	Track 5D; expiry diary	B16-2026 watch
Fleet manager (Module C)	Driving-role list; consent	Gate C: inherent?			Final stage: licence, PrDP, AARTO status	Driver particulars before first drive	
IT / AI owner and IO (Module D)	AI register; vendor DD	Gate D: tools in scope	AI notice; ad review	Human review; s.71 log			Adverse-impact audit
Candidate			Apply; EEA1; accommodation	Consent or decline; respond	Interview	Accept; documents; induction	

Parallel track: disputes, complaints and regulator events (P1–P14) — from the advert until the last referral window closes

White = core recruitment step · Blue = variable-gate or module step · Arrows on the TA lane = the spine; vertical arrows = key hand-offs

Read each phase column top to bottom to see who acts and who hands off; read each lane left to right to see one party's whole job. The TA lane is the spine. The three blue lanes are the module owners: legal or immigration (Module A), the fleet manager (Module C) and the IT or AI owner with the Information Officer (Module D). Module B is carried by the EE manager's lane; its blue cells are the gate, the deviation decision and the deviation register. The disputes and complaints track runs underneath from the day the advert is published until the referral windows close.

03 / RECRUITMENT AND SELECTION PROCESS

Phase 0 — Readiness (standing obligations)

Phase 0 has no case trigger. It must be in place before the first vacancy is raised, because the lawfulness of preference, the validity of every assessment and AI tool, the POPIA basis for every check, the right-to-work procedure and the driver-check rules are all decided by documents that must already exist. Steps 0.16–0.19 are new in v2.0 and set up the four modules.

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.1 Confirm designated status and sector	Confirm whether the employer is designated (50 or more employees, organ of state, municipality, or by collective agreement). Identify the s.15A sector in which most employees are engaged and record it (form EEA17 is proposed in DRAFT GN 7719). Non-designated employers skip the plan-based preference steps but remain bound by Chapter II.	EEM, LA	Now; each reporting cycle	RS03	EEA ss.1, 14, 15A; Reg 9(7)(c); DRAFT GN 7719
0.2 Current, consulted EE plan	EE plan for 1 September 2025 – 31 August 2030 consulted with the EE forum, with annual targets aligned to the sectoral targets for the four upper levels and the 3% disability target, and numerical goals for the other levels. Record the target set used (national, regional or plan-specific). Write pipeline, succession and development-appointment measures into the plan itself.	EEM, EEF, BOARD	Now; annual review	RS03; EE plan	EEA ss.16, 17, 20, 20(2A); Reg 9(10), 9(13); CL: *Erasmus* (LAC 2025)

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.3 Recruitment and selection policy	Board-approved policy covering: the three designation paths; the three EE application models; the deviation route and approval tiers (Module B); ring-fencing and direct appointment; advertising periods; internal-candidate rules; panel composition; scoring and thresholds; verification by role; offers; fixed-term, TES and foreign-national engagements, including whether the employer will sponsor visas; driving roles; permitted AI tools; records and retention. Reconcile with collective agreements, which prevail.	BOARD, TA, LA	Now; annual review	RS01	Code on HR Policies; LRA s.186(2)(a); CL: *Mofokeng* (LAC 2014)
0.4 Delegations	Who may approve a requisition, a designation, a ring-fence or direct appointment, an EE deviation (by occupational level, step B.10), an offer above band, a fixed-term or TES engagement, a foreign-national appointment or visa sponsorship, and the use of a new AI tool.	BOARD, DA	Now	RS02	BP
0.5 Competency frameworks and job profiles	Current job profiles and competency frameworks, including whether each role drives or controls a vehicle (feeds Module C), so that job analysis at step 1.5 starts from something. Link to the GBS Performance Management process.	TA, LM, FM	Now; on change	Job profile library	Code on HR Policies
0.6 Succession and talent register	Documented, fair talent process: how successors are nominated, assessed and reviewed; readiness ratings; EE profile of the pool. A successor identified outside this process cannot support path (c).	TC, EEM	Now; annual	RS09	EEA s.15(2)(d); BP
0.7 Assessment tool register	For every tool: what it measures; HPCSA classification; South African norms; validity, reliability and adverse-impact evidence; who may administer it; accommodations. AI-scored tools are entered here and on the AI register (0.19). Prefer structured interviews and job-specific work samples.	TA, PSY	Before first use; every 3 years (BP)	RS04	EEA s.8; Health Professions Act; CL: *ATP* (GNP 2017)
0.8 ATS governance	Inventory the applicant-tracking system's automated functions (knock-out questions, parsing, ranking, auto-emails). Detailed AI controls sit in step 0.19 and Module D.	IT, IO, TA	Before use; annual audit	RS05	POPIA ss.19, 71, 72



Step	Organisational action	Owner	Deadline	Form / output	Authority
0.9 Privacy notice, lawful basis and retention	Candidate privacy notice: purpose; recipients including agencies, verification vendors and AI vendors; retention; rights; automated tools and their logic; cross-border hosting; driver and right-to-work checks where they apply. Lawful basis for each category, including special personal information (race, health, disability for EE; criminal behaviour; biometric data from video tools). Retention schedule (EE plan and supporting records at least 5 years after the plan expires (EE Regulations, 2025); unsuccessful external candidates 3 years (BP); internal candidates for the life of employment plus 3 years (BP); foreign-national records for 2 years after the employment ends (Immigration Act s.38(4))).	IO, LA	Now	RS08	POPIA ss.11, 14, 18, 26–33, 72; EEA s.26; Immigration Act s.38(4); Prescription Act s.11
0.10 Verification framework	Schedule of which checks apply to which roles, and when. Credit checks only for roles certified as requiring honesty in dealing with cash or finances, with job descriptions on file. Criminal checks assessed for relevance. Mandatory registers for roles with access to children or persons with mental disabilities. Driver checks only for roles on the driving-role list (0.18). Contract only with vendors holding any POPIA prior authorisation needed for processing criminal-behaviour information on behalf of third parties.	TA, LA, IO	Now	RS07; RS20	NCA Regs regs 18(4)(c), 19(12); POPIA ss.33, 57(1)(b); Children's Act s.126; Sexual Offences Act s.45
0.11 Agency and TES contracts	Written agreements binding agencies and TES providers to the EE policy and designation, the screening matrix, POPIA operator duties, the right-to-work procedure, the AI rules (no undisclosed AI screening on the employer's behalf), and non-discriminatory filtering. Check private employment agency registration and the ban on charging work-seekers fees. For TES: registration, and a clause allocating the s.198A deeming consequences.	TA, LA	Now; on renewal	RS06	ESA ss.13–15; LRA ss.198, 198A; POPIA ss.20–21
0.12 Accessibility and reasonable accommodation	Accessible application channels and formats, including alternatives to chatbots, video interviews and games; a named accommodation contact; a budget line for accommodations.	TA, EEM	Now	RS18	EEA s.15(2)(c); Disability Code items 6–7

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.13 Channels and outreach list	Targeted channels per occupational level: designated-group professional bodies, disability organisations, universities and TVETs, the DEL ESSA portal, community media. The same list is the local-search channel list for Module A.	TA, EEM	Now; annual	RS15	Code on HR Policies item 7; BP
0.14 Train	Panels: structured interviewing, BARS, prohibited topics, bias, the EE models, timing and the deviation route. Line managers: requisition, job analysis, the four gates. TA: POPIA, verification, right-to-work documents, s.71, conditional offers. Fleet managers: driver checks and onboarding. Delegated authorities: written reasons.	TA / L&D	Before first panel; annually	Attendance records	BP
0.15 Small-employer version	Non-designated employers use a shortened flow: job-related criteria; open advert; consistent screening; a short structured interview; conditional offer; BCEA s.29 particulars. Chapter II, POPIA, ESA ss.8–9, the Immigration Act, AARTO s.17(5) (in AARTO municipalities) and the NCA still apply in full; Gates A, C and D still apply, Gate B does not.	TA, LA	Now	Simplified procedure	EEA ss.5–9; BP
0.16 Right-to-work and foreign-national procedure (new)	Adopt the Module A procedure: accepted documents by status; who inspects and verifies; DHA verification channel; whether and when the employer will sponsor visas (critical skills, general work, intra-company transfer); asylum-seeker letter duty; expiry diary; records. Appoint or retain an immigration adviser for sponsorship cases.	LA, TA, IMM	Now	RS43; RS47	Immigration Act ss.38, 49; ESA ss.8–9; Refugees Act s.22(9)
0.17 EE deviation governance (new)	Adopt the Module B deviation route: what counts as a deviation; approval tiers by occupational level; evidence standard; the deviation register; reporting to the EE forum and into the EEA2. Write the tiers into the delegations (0.4).	EEM, BOARD, LA	Now; annual	RS48; RS50	EEA ss.15, 20, 42; Reg 16(5); CL: *Benjamin*
0.18 Driving-role framework (new)	List roles where driving or controlling a vehicle is inherent, with licence code and PrDP category; the driver-record notice and consent; what may and may not be used to reject; onboarding duties linked to the GBS AARTO flow (steps 0.5–0.7).	FM, HR, LA, IO	Now; on each AARTO proclamation	RS51; RS52	AARTO Act s.17(5); NRTA; POPIA ss.11, 18



Step	Organisational action	Owner	Deadline	Form / output	Authority
0.19 AI register and vendor due diligence (new)	Inventory every AI or automated tool used in sourcing, advert drafting, screening, ranking, chatbots, video or game assessment and scheduling; for each: purpose, decision points, data, hosting, vendor evidence of validity and SA subgroup adverse impact, human-review design, s.71 representations route; approve or prohibit. Align with the GBS AI Policy and the GBS AI Compliance flow (being built in parallel).	AIO, IT, IO, TA, LA	Before any use; annual	RS05; RS55	POPIA ss.18, 19, 21, 71, 72; EEA ss.6, 8

Candidate side of Phase 0. Nothing is owed yet, but candidates' later rights depend on this phase. A candidate screened out by a tool that was never validated, by a credit check for a role that was never certified, or by a driver check for a role that does not drive has a strong claim whatever the merits.

Watch. An EE plan that has expired or was never consulted leaves every preferential decision without a defence (CL: *Solidarity obo Pretorius v City of Tshwane*, LC 2016: expired plan, no defence). Check the plan dates, the AI register and the driving-role list before the first requisition of every year.

04 / RECRUITMENT AND SELECTION PROCESS

Phase 1 — Vacancy, job analysis, designation and variable gates

Day 0 is the day the line manager raises the requisition. Phase 1 must be finished before anything is published, because the advert must state the requirements, the equivalents, the EE position and the notices the gates require, and none of these may change afterwards (CL: *Moses Kotane*, LAC 2026). Phase 1 produces five governing documents: the Vacancy EE Impact Note, the person specification, the competency profile, the Designation Decision Record, and the Variable Gates Record (RS60).

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.1 Raise the requisition	New post, replacement, or restructured post.	LM submits: reason; new, replacement or restructured; reporting line; start date; any proposed internal, succession or foreign-national candidate (declared now); whether the role will drive; any AI tool the LM wants to use. Consider permanent, fixed-term or TES.	LM	Day 0	RS10	BP
1.2 Confirm budget, grade and level	Requisition received.	TA confirms budget, grade and band, the EEA2 occupational level and the sector. Check the band does not create unjustified pay differentials.	TA, FIN	By day 2 (BP)	RS10	EEA s.6(4); Reg 9(7)(c)
1.3 Vacancy EE Impact Note	Level confirmed.	EEM records: profile at that level against the annual target, the sectoral target and the EAP; over- and under-represented groups; target set used and data date; disability and pipeline categories.	EEM	By day 3 (BP)	RS11	EEA ss.15A, 20(2A); Reg 9(10), 9(13); CL: *Benjamin*
1.4 Succession check	Level confirmed.	TA checks the succession register: ready-now or ready-soon successor, group, and how identified.	TA, TC	By day 3 (BP)	RS09	BP
1.5 Job analysis	Post approved in principle.	Tasks, outputs, knowledge, skills and behaviours. Record specifically: whether, how often and in what vehicles the job drives or controls a vehicle (Module C); any occupational registrations; any security, child-access or cash-handling exposure that would justify a check.	LM, TA, FM	By day 5 (BP)	RS12	Code on HR Policies
1.6 Inherent requirements and person specification	Job analysis complete.	Separate inherent requirements from advantageous attributes. Include only criteria essential to the duties. For each minimum, state acceptable s.20 equivalents. A driving licence or PrDP is a requirement only where driving is inherent (C.2). Where an AI tool drafted the specification, review it against the job analysis (D.4).	LM, TA	By day 5 (BP)	RS13	EEA ss.6(2)(b), 20(3)–(5)
1.7 Essential functions and accommodation	Specification drafted.	Describe essential functions so applicants with disabilities can decide; note feasible accommodations.	LM, EEM	With 1.6	RS13	Disability Code items 7.1.2–7.1.5

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.8 Competency profile and scoring framework	Specification final.	4–6 competencies, assessment method for each, weights and the suitability threshold. Fixed now; no change after the advert.	TA, LM	Before 1.9	RS26	BP
1.9 Designation decision	Impact Note, succession check and specification complete.	Choose path (a), (b), (c) or (b)+(c). Record: path; targets relied on, with figures and data date; the pool-availability analysis (RS49, step B.4); the EE model (1, 2 or 3); the deviation route that will apply if no target-group candidate is appointable; approver and date.	EEM, TA, DA	By day 7 (BP); before any advert	RS14; RS49	EEA s.15(2)–(4); CL: *Benjamin*; *Erasmus*
1.10 Governance of the designation	Path chosen.	Open: TA and EEM sign. Preferential: EEM motivation; EEF informed; DA approves; LA reviews. Succession-linked: TC record; EEM comment; policy authorises ring-fencing or direct appointment; LA reviews.	DA, EEF, LA	Before any advert	RS14	EEA s.16; BP
1.11 Variable gates (new)	Designation signed.	Answer and sign Gates A–D on RS60 (Figure 2). **A:** is the role open to, or is a known candidate, a foreign national? Will the employer sponsor a visa? **B:** is a target at stake, and is a deviation foreseeable from the pool analysis? **C:** does the role drive or control a vehicle, and is that inherent? Which licence code and PrDP? **D:** which AI or automated tools will be used, and are they approved on the AI register? Each "yes" opens the module and names its owner.	TA with EEM, FM, AIO, LA	By day 8 (BP); before any advert	RS60	ESA s.8; EEA s.15; AARTO Act s.17(5); POPIA ss.18, 71
1.12 Requisition approval	Gates signed.	DA approves the requisition with the Designation Decision Record and RS60 attached. TA opens the recruitment file and diarises the vacancy calendar (section 18).	DA, TA	By day 8 (BP)	RS10; RS41	BP

Designation decision table

Path	When appropriate	Governance required	What it permits	What it does not permit
(a) Open	Target met or neutral at that level; or no realistic designated pool	TA plus EEM sign-off	Pure merit selection; standard EE statement; EE as tie-breaker	Introducing EE preference after interviews (CL: *Moses Kotane*)
(b) Preferential	Under-representation of a specified group at that level against the annual or sectoral targets	EEM written motivation tied to specific targets; pool analysis; EEF informed; DA approves	Preference for suitably qualified candidates from specified groups among the appointable	Excluding others from applying; appointing below the threshold; using national data where the plan uses regional data
(c) Succession-linked	Development candidate identified through a documented talent process	TC record; EEM comment; policy provision	Internal-first advertising where policy allows; readiness assessment; Model 3	Sham advertising; denying other eligible staff a fair opportunity (CL: *Noonan*)
(b)+(c) combined	Designated-group successor from a pipeline written into the EE plan	Both sets of governance	The most defensible succession appointment	Relying on an informal pipeline with no written basis in the plan, policy or talent process (BP: *Erasmus* upheld a known, target-linked pipeline, but a written basis is far easier to prove)

Candidate obligations at this stage. None; candidates are not yet involved. An internal or foreign-national candidate proposed by the line manager must be declared at step 1.1.

Hand-offs. LM → TA (requisition). TA → EEM (Impact Note, pool analysis). TA → TC (succession check). EEM → DA (designation). TA → FM (driving role), AIO (tools), LA or IMM (foreign national) for Gate answers. LA → DA (review). TA → FIN (band).

Watch. Designating a post "preferential" after candidates are known, earmarking a post contrary to the plan, or adding a driver check or an AI screening tool after the advert, are all late changes that the record will expose. The Designation Decision Record and RS60 must bear dates earlier than the advert.



Phase 2 — Sourcing, advertising and applications

The advert fixes what the employer may later rely on. Criteria added afterwards, or a material departure from it, require re-advertising (CL: *Moses Kotane*). Phase 2 also fixes the POPIA basis for everything later done with candidate information, including driver records and AI processing, and starts the local-search record that Module A needs.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.1 Channel plan	Requisition approved.	Open: concurrent internal and external. Preferential: plus targeted channels (B.6). Succession-linked: internal ring-fenced for 5–10 working days where policy permits. Gate A open: include ESSA and local channels and keep proof (A.3).	TA, EEM	By day 9 (BP)	RS15	Code on HR Policies item 7; ESA
2.2 Draft the advert	Channels chosen.	Include: inherent requirements with s.20 equivalents; the EE statement or preference wording; accessibility and accommodation contact; POPIA notice link; closing date, reference and right not to appoint; that credit, criminal, qualification, right-to-work and (driving roles) licence, PrDP and AARTO-status checks may apply at final stage; for fixed-term posts, term and reason; where AI tools are used, a plain statement and how to ask for human review (D.5). If AI drafted the advert, complete RS59 before release (D.4).	TA, LA	By day 10 (BP)	RS15; RS59	EEA s.20(3)–(5); POPIA ss.18, 71
2.3 Brief agencies	Agency used.	Written brief on EE policy, designation, screening matrix, right-to-work procedure, no undisclosed AI screening, and the ban on filtering by protected characteristics. Agency submissions enter the same register.	TA	Before release	RS06	Code on HR Policies item 7.3.2.2; POPIA s.21
2.4 Publish	Advert approved.	Publish on all planned channels on the same day; keep each advert as published with dates. Minimum period BP 10 working days (5 for ring-fenced internal).	TA	Day 10 (BP)	RS15	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2.5 Right-to-work statement and local search	Gate A open, or any external advert.	State that appointment is subject to the right to work in South Africa. Do not exclude permanent residents. Start the local-search record from the day of publication (A.2–A.3).	TA, LA	At advert	RS44	ESA s.8; Immigration Act s.38; CL: *Larbi-Odam*
2.6 Privacy notice at collection	Application received.	Every channel presents the s.18 notice before or at collection, including recipients (agencies, vendors, AI vendors), cross-border hosting, any automated tool and its logic, and the route to request human review.	TA, IO	At collection	RS08	POPIA ss.18, 71(3), 72
2.7 EE self-declaration	Application received.	EEA1 is voluntary and self-identifying; it also records citizenship, because only citizens who meet the s.1 test count as designated. Store it separately from what the panel sees where feasible. Use in selection only for posts designated preferential at step 1.9. Never feed it to an AI ranking tool.	TA	At application	EEA1	EEA s.19; POPIA ss.26–29, 32
2.8 Disability disclosure and accommodation	Candidate discloses or requests.	Voluntary and confidential; a separate channel handles accommodation requests, including alternatives to AI video, game or chatbot formats.	TA, EEM	Within 2 working days (BP)	RS18	Disability Code item 7.2.1; EEA s.15(2)(c)
2.9 Application register	Every application.	Log and acknowledge every application, including agency and internal, on one register the day it arrives. The register cannot be rebuilt later (CL: *Hlope*, LC 2024, verify).	TA	Same day; acknowledge in 2 working days (BP)	RS16	BP
2.10 Close and freeze	Closing date.	Close the register; late applications handled consistently and the decision recorded.	TA	Closing date	RS16	BP
2.11 Candidates' use of AI (new)	Advert published.	Publish the candidate AI-use statement: AI may be used to prepare a CV or cover letter; content must be true; live assessments and interviews must be the candidate's own work unless stated otherwise (D.10).	TA	With advert	RS58	NQF Act s.32B; BP

Sample advert wording

Open post.

[Employer] is an equal opportunity employer committed to employment equity under its Employment Equity Plan. All suitably qualified applicants are encouraged to apply. Persons with disabilities are invited to apply and to indicate any reasonable accommodation required during the selection process. Appointment is subject to the right to work in South Africa.

Preferential post.

This position forms part of [Employer]'s Employment Equity Plan for [occupational level]. In line with that Plan and the applicable sectoral targets, preference will be given to suitably qualified candidates from the following designated groups: [e.g. African women; persons with disabilities]. All suitably qualified applicants are welcome to apply and will be considered. "Suitably qualified" includes formal qualifications, recognised prior learning, relevant experience, or the capacity to acquire the ability to do the job within a reasonable time. [Employer] reserves the right not to make an appointment.

Succession-linked post (internal ring-fenced phase).

Internal advertisement. This role is being filled through [Employer]'s Talent and Succession Programme. Applications are invited from all permanent employees at [grade/level] who meet the requirements below. Candidates identified in the succession pool, and any other eligible employee, will be assessed through the same structured process. In line with our Employment Equity Plan, preference may be given to suitably qualified candidates from [designated groups]. If no suitable internal candidate is identified, the role will be advertised externally.

Driving role (add to any of the above).

Driving is an inherent requirement of this role. Applicants must hold a valid Code [C1/EC] driving licence [and a Professional Driving Permit, category [G/P/D]]. Final candidates will be asked to consent to verification of their licence and PrDP and to disclose any outstanding AARTO enforcement order or licence suspension. Traffic fines alone will not disqualify an applicant.



AI notice (where Gate D is open).

We use [tool] to [schedule interviews / answer questions / organise applications]. No application is rejected by a computer: a member of our recruitment team reviews every decision. You may ask for an explanation or a review by a person at [contact]. See our candidate privacy notice for details.

Direct appointment without advertising is defensible only where the recruitment policy or a collective agreement expressly allows it, the successor was identified through the documented talent process (step 0.6), and the EEM and DA sign off (CL: *Mofokeng*, LAC 2014).

Candidate obligations at this stage. Submit a complete application by the closing date; give truthful information about qualifications, registrations, right-to-work status, licences and history (a false qualification claim is an offence, NQF Act s.32B); disclose any need for accommodation; follow the AI-use statement.

Hand-offs. TA → AGY (brief). TA → channels (publication). TA → IO (privacy notice). TA → LA or IMM (local-search record). CAND → TA (applications, EEA1, accommodation requests).

Watch. The privacy notice must name the verification vendors, any AI vendor and any automated tool. A check run by a vendor the candidate was never told about, or a ranking by a tool that was not disclosed, is unlawful processing even if the check itself was justified.

06 / RECRUITMENT AND SELECTION PROCESS

Phase 3 — Screening, verification and assessment

Phase 3 applies the advertised minimums consistently, verifies what can be verified proportionately at shortlist stage, and gathers the job-related evidence the panel will score. It is the last cheap point to re-source a preferential post (B.7), the point where right-to-work status is confirmed (A.5), and the point where any AI screening must have passed through a human (D.6).

Screening and long-listing

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.1 Screen against the matrix	Register closed.	Two screeners, at least one from HR, apply the screening matrix: each minimum scored Met / Met by s.20 equivalent / Not met, with a reason for every "Not met". Nationality is not a screening criterion; right-to-work status is recorded, not scored (A.4). A licence is screened only for driving roles (C.4).	TA, LM	Within 5 working days of closing (BP)	RS19	EEA s.20(3)–(5); BP
3.2 Automated screening control	Any ATS or AI tool used.	No candidate is rejected by a tool without a human reviewing the decision against the matrix; record the reviewer, the tool output and the human decision (D.6–D.7). Candidates who ask are told the logic in plain language and may make representations.	TA, AIO	During 3.1	RS57	POPIA s.71(1)–(3)
3.3 Long-list and EE profile review	Screening complete.	EEM reviews the long-list profile against the Designation Decision Record and RS49. Preferential posts: if no designated candidate meets the minimums, record it and decide whether to re-source before interviews (B.7).	EEM, TA	Within 2 working days (BP)	RS14; RS19	Reg 16(5)(c); CL: *Benjamin*
3.4 Internal applicants	Internal applications on the long-list.	Every eligible internal applicant meeting the minimums is long-listed; for ring-fenced posts, all eligible employees at the grade.	TA	With 3.3	RS19	LRA s.186(2)(a); CL: *Noonan*
3.5 Consent to checks	Candidate shortlisted.	Written, specific consent for each check (criminal, credit, qualifications, references, registrations, and for driving roles the licence, PrDP and AARTO-status checks on RS52); explain purpose and vendor; declining is handled under the policy, not treated as an admission.	TA	At shortlist	RS20; RS52	POPIA ss.11, 18, 26–27, 33; NCA Regs reg 19(12)
3.6 Shortlist checks	Consent given.	ID and right to work (A.5); qualifications through SAQA/NLRD or the institution (foreign qualifications by SAQA evaluation); professional registrations that are inherent requirements. Log each result.	TA, VV, LA	Within 5 working days of consent (BP)	RS21; RS43	ESA s.8; Immigration Act s.38(2); NQF Act s.32B

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.7 Adverse findings	A check returns a discrepancy.	Tell the candidate in writing what was found and give a reasonable opportunity to explain or correct it before any decision; POPIA access and correction rights apply. Refer apparent qualification or visa fraud to LA.	TA, LA	Before any decision	RS21 (L5)	POPIA ss.23–24; NQF Act s.32B

Verification check register

Verify **after** shortlisting and **before** the final offer, or make the offer expressly conditional. Verifying everyone at application stage is disproportionate under POPIA's minimality principle; verifying only after contracting creates *Wyeth* risk.

Check	Legal basis and constraint	When	Weight in the decision	Pitfall
ID and right to work	ESA ss.8(1), 9(1); Immigration Act s.38(1)–(2); Refugees Act s.22 (Module A)	Shortlist	Gate: no valid right to work for this job with this employer, no start	A passport is not a right to work; check visa type, employer and position endorsed, conditions and expiry
Qualifications	NQF Act s.32B offences (in force 13 October 2023); s.32A(1) not yet in force	Shortlist	Gate where inherent; otherwise scored	Foreign qualifications need SAQA evaluation; do not reject for missing paper where RPL or a s.20 equivalent is stated
Professional registration	Relevant statute (ECSA, SAICA, HPCSA, LPC, PSIRA and others)	Shortlist	Gate where registration is inherent	Check category and conditions; critical-skills visa holders may hold candidate registration only
Criminal record	SAPS clearance or accredited vendor; POPIA s.33 and consent; vendor prior authorisation (POPIA s.57(1)(b))	Final 1–3 candidates	Assessed for relevance: offence, time elapsed, link to role	Blanket exclusion risks indirect discrimination; arrests without convictions are not records

Check	Legal basis and constraint	When	Weight in the decision	Pitfall
Child-protection and sexual-offences registers	Children's Act ss.123, 126 (check Part B of the National Child Protection Register before allowing work with or access to children); Criminal Law (Sexual Offences) Amendment Act 32 of 2007 ss.41, 45 (employer must apply for a certificate before employing; offence up to 7 years)	Final candidates for roles with access to children or persons with mental disabilities	Gate: a listed person may not be employed in such a role	Applies to contractors and volunteers too; check both registers
Credit	NCA Regulations reg 18(4)(c) (only for a candidate for a position that requires honesty in dealing with cash or finances) and reg 19(12) (the requester certifies this and the job description is clearly outlined); NCR Circular 4 of 2019 (keep consent and job description 3 years)	Final candidates, certified roles only	Relevant only to financial-trust risk	A credit check for a non-certified role is unlawful
References	Consent; structured template	Final candidates	Corroborative	No health, family or protected-characteristic questions
Social media	POPIA ss.10, 12, 13; EEA s.6	Generally avoid; never by AI scraping	If used: public professional content only, by a non-decision-maker, against a checklist	Exposure to religion, pregnancy, political opinion or health contaminates the decision
Driving licence, PrDP and AARTO status	NRTA (licence and PrDP); AARTO Act s.17(5) (particulars before driving), s.20(5) (enforcement order blocks licence and PrDP issue); POPIA ss.11, 18 (Module C)	Final candidates for driving roles only	Gate: valid licence of the required code and PrDP; enforcement order to be resolved before start	Unpaid infringements alone are not a ground to reject; demerit points are not in force
AI-generated content or identity	NQF Act s.32B; POPIA s.71; EEA s.6 (Module D)	Interview and assessment	Verify by live structured interview or supervised work sample	Do not reject on an AI-detector score alone



Assessments

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.8 Select the assessment battery	Shortlist settled.	Only tools on RS04 (and, if AI-scored, approved on the AI register) that measure competencies in the profile. Weight towards structured interviews and job-specific work samples; cognitive tests never the sole cut-off unless validated as such.	TA, PSY	Before invitations	RS04	EEA s.8(a)–(c)
3.9 Invite and offer accommodation	Battery chosen.	Invitation states date, format, duration, what is assessed, whether AI scores any part, the accommodation offer and a non-AI alternative where requested; at least 5 working days' notice (BP).	TA	≥ 5 working days before (BP)	RS22 (L2)	Disability Code item 7.2.1; POPIA s.18
3.10 Psychological assessments	Psychometric tool used.	Administered, scored and interpreted by an HPCSA-registered psychologist or psychometrist; classified tools with SA norms; report records registration number and accommodations.	PSY	Per schedule	RS23	EEA s.8; Health Professions Act
3.11 Work samples and simulations	Work sample used.	Standardised instructions and time; anchored rubric; two assessors scoring independently; for driving roles a practical driving assessment by a qualified assessor where justified (C.6).	SME, TA, FM	Per schedule	RS26	BP
3.12 Polygraph (exceptional)	High-security role and policy permits.	Never a sole or decisive gate; informed written consent; refusal treated neutrally.	LA	Only where policy permits	RS20	No statutory authority

Selection instruments catalogue

Validity figures follow Sackett, Zhang, Berry & Lievens (2022), which re-estimated classic meta-analytic validities downwards and ranked structured interviews first (mean operational validity about r = .42).



Instrument	What it shows	Weight	Pitfall
Application form / CV	Eligibility against minimums	Low as a predictor; high as a record	Unverified claims; AI-polished CVs make style a poor signal; consider anonymised screening
Screening matrix	Consistent application of advertised minimums	Decisive for long-listing	Criteria not in the advert; "Not met" without a reason; single screener
Structured interview	Competencies through behavioural and situational questions	Highest-ranked predictor (r ≈ .42)	Drifting off the guide; scoring after discussion
Work sample / simulation / case study	Performance on the job's own tasks	High; low adverse impact	Unequal instructions or time; single assessor; no accommodation
Situational judgement test	Judgement in job scenarios	Moderate	Cultural or language bias; needs SA validation
General mental ability test	Reasoning capacity	Moderate after 2022 re-estimation; larger subgroup differences	Adverse impact; EEA s.8(c) onus; never a sole cut-off unless validated
Personality inventory	Work-related traits	Low to moderate	Classified tool and registered practitioner; not a proxy for "fit"
Assessment centre	Multiple competencies	Moderate; costly	Calibration; exercises must map to the profile
Internal performance data	Track record	Useful if current and comparable	Only if weighting disclosed and equivalent evidence sought from external candidates
AI CV ranking or matching	Similarity to a profile or past hires	Unproven; replicates history	Proxy discrimination (names, schools, addresses, gaps); s.71; never an auto-reject
AI video interview scoring	Speech, word choice, sometimes facial cues	Unproven in SA; facial analysis has weak validity	Biometric special personal information; disability and accent bias; EEA s.8 "similar assessment"
Game-based or gamified assessment	Cognitive or behavioural traits	Varies; needs local evidence	EEA s.8; device and connectivity disadvantage; accommodation
Recruitment chatbot	Answers, scheduling, knock-out questions	Administrative only	Knock-outs only on advertised minimums with human review; disclose it is a bot



Instrument	What it shows	Weight	Pitfall
Driving assessment	Practical competence for driving roles	High where driving is inherent	Only for driving roles; standardised route and assessor
Medical / functional assessment	Fitness for inherent requirements	Gate after conditional offer only (BP)	Prohibited unless legislation permits or requires it or it is justifiable on the s.7(1) grounds (for example the inherent requirements); testing only after a conditional offer and only for inherent requirements is BP; HIV testing needs a court order (s.7(2))
Polygraph	Physiological response	At most corroborative	No statutory authority; never decisive

Candidate obligations at this stage. Consent to or decline each check; produce original right-to-work and licence documents when asked; attend assessments or ask for accommodation in good time; answer adverse findings truthfully; complete assessments personally unless AI use is permitted.

Hand-offs. TA → VV (checks, with consent). TA → LA or IMM (visa verification). TA → FM (driver checks). TA → PSY (battery). AIO → TA (tool outputs for human review). TA → EEM (long-list profile). TA → LA (adverse findings, suspected fraud).

Watch. *AMCU v Ngululu Bulk Carriers* (CC 2020) is sometimes cited on psychometric testing; it is a jurisdiction and *lis pendens* case. Rely on EEA s.8, the *ATP* judgment and HPCSA classification instead.

07 / RECRUITMENT AND SELECTION PROCESS

Phase 4 — Interview, scoring and the EE decision

Phase 4 turns evidence into a ranking, applies the EE model fixed in Phase 1, and produces the Selection Report. Its output must let a stranger see, months later, why this candidate was chosen, why each other shortlisted candidate was not, and, where the outcome departs from the designation, why and who approved the deviation.



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.1 Constitute the panel	Shortlist final.	3–5 members: LM, TA (process custodian), an SME and an EE representative; diverse where possible. Union observers only where provided; observers do not score. The successor's line manager or mentor declares and does not chair.	TA, LM	Before CVs are shared	RS24	BP
4.2 Conflict-of-interest declarations	Panel named.	Every member signs before seeing CVs. Recusal where conflicted.	PNL	Before CVs	RS24	BP
4.3 Interview guide and BARS	Panel constituted.	Same core questions for every candidate, from the competency profile; behaviourally anchored scales (1–5). No questions about nationality beyond right-to-work status, or about traffic history except the disclosed driver checks for driving roles.	TA, LM, SME	Before invitations	RS25	BP
4.4 Conduct interviews	Invitations sent (L3).	Confirm identity on camera or in person (deepfake and proxy risk, D.10). Core questions in order; probes; candidate questions. No prohibited topics. Each member scores independently before discussion. AI note-takers only if approved on the register and disclosed; their summaries are not scores.	PNL	Per schedule	RS25	EEA ss.6, 9; LRA s.5(2); POPIA s.18
4.5 Weighted merit total	All interviews and assessments done.	Combine components using the weights fixed at step 1.8. Merit is scored without reference to EE status or nationality.	TA	Within 2 working days (BP)	RS26	BP
4.6 Calibration	Totals compiled.	Outliers discussed and adjusted only with written reasons; originals kept. Check results by group for adverse impact, separately for any AI-scored component (D.9).	TA, PNL	With 4.5	RS26; RS56	EEA s.8(c); BP
4.7 Suitability threshold and EE step	Calibration complete.	Candidates at or above the threshold are "appointable". Apply the EE model fixed at step 1.9, and only that model. Nobody below the threshold is appointed "for EE".	PNL, EEM	At calibration	RS26	EEA ss.15(3)–(4), 20(3)–(5)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.8 Final-candidate checks	Preferred candidate and reserve identified.	Criminal, credit (certified roles), registers (where relevant), references, and for driving roles the licence, PrDP and AARTO-status checks (C.5–C.7); for foreign nationals, confirm the visa covers this position (A.5).	TA, VV, FM	Within 5 working days (BP)	RS21; RS27; RS53	See verification register
4.9 Selection Report	Checks complete or pending as offer conditions.	Process followed; all scores; ranking; threshold; the EE application; the recommended candidate and a reserve; reasons for each shortlisted candidate not recommended; any AI tool used and the human decisions taken on its outputs.	CHR, TA	Within 3 working days of 4.7 (BP)	RS28	EEA s.11; POPIA s.71
4.10 EE sign-off or Deviation Motivation	Selection Report received.	EEM confirms consistency with the Designation Decision Record. If the recommendation departs from it, prepare the Deviation Motivation (RS48) and route it to the approver for that level (B.9–B.10).	EEM	Within 2 working days (BP)	RS29; RS48	Reg 16(5); CL: *Benjamin*
4.11 Approval with reasons	EE sign-off or approved deviation received.	DA approves, or refers back with written reasons that engage with the panel's reasons. Appointing a candidate the panel did not recommend, without such reasons, is high-risk (CL: *Benjamin*; *SAPU obo Singh v SAPS*, LC, secondary sources only, verify).	DA	Within 3 working days (BP)	RS30	CL: *Benjamin*
4.12 No appointable candidate	Nobody meets the threshold, or no target-group candidate is appointable on a preferential post.	Record the pool analysis; decide positively whether to re-advertise through targeted channels and then actually do it (in *Benjamin* the post was "to be re-advertised" and never was); or appoint the best appointable candidate on merit through the deviation route (B.9–B.12).	DA, EEM	Within 5 working days (BP)	RS29; RS48; RS50	Reg 16(5); CL: *Benjamin*

Prohibited and high-risk interview topics

Do not ask about: pregnancy or family plans; marital status; age (unless an inherent requirement); religion; HIV status; health beyond the ability to perform the inherent requirements with or without accommodation; sexual orientation; political affiliation; union membership;

ethnic or social origin; nationality or immigration history beyond the right to work; language (unless job-related); arrests without convictions; traffic fines (beyond the disclosed checks for driving roles). Questions on these grounds are evidence of discrimination even if the answer is not used (EEA ss.6(1), 11; LRA s.5(2)).

Illustrative weighted scoring matrix

Component	Weight (BP)	Source	Scoring
Structured interview (competencies 1–6)	40%	Step 4.4	Mean of independent panel scores on BARS 1–5
Work sample or technical assessment (including driving assessment for driving roles)	25%	Step 3.11	Anchored rubric, two assessors
Psychometric (if used; s.8-compliant)	10–15%	Step 3.10	Practitioner report converted to bands
Relevant experience and track record (verified)	10–15%	CV, references	Pre-defined bands
Qualifications beyond the minimum	0–10%	Verified	Pre-defined; do not double-count minimums
AI-generated scores	0% as a separate component (BP)	Module D	At most an input a human assessor considers; never added mechanically
Suitability threshold	e.g. ≥ 60% overall and ≥ 3/5 on each critical competency		At or above = "suitably qualified / appointable"
EE step	Not a weight: a documented decision rule	Designation Decision Record	Only for posts designated at step 1.9



The three lawful EE application models

Model	Used for	Decision rule	Record needed
1. Tie-breaker	Open posts	Where appointable candidates are closely matched (e.g. within 5 percentage points), EE status in line with the plan decides	Scores showing the tie; plan reference
2. Preference among the appointable	Preferential posts	Among all candidates at or above the threshold, the highest-ranked target-group candidate is appointed unless a documented operational reason applies	Threshold list; group; reasons for any exception
3. Structured development appointment	Preferential or succession-linked posts	A designated candidate who meets the s.20(3)(d) "capacity to acquire within a reasonable time" standard is appointed with a development plan, timelines and a confirmation review	Evidence of capacity; development plan RS40

Always prohibited. Excluding a group from consideration; appointing below the threshold "for EE"; using targets as the sole reason to reject a suitable candidate where no suitable target-group candidate is realistically available (in *Benjamin* the targets became "a neutral factor"); continuing to prefer on race once targets at that level are met, if the plan says merit then governs (CL: *Reynhardt v UNISA*, LAC 2010, verify); changing the model after the advert.

Candidate obligations at this stage. Attend the interview or give notice; confirm identity; answer truthfully; respond to any adverse finding.

Hand-offs. TA → PNL (guides, scores). PNL → TA (score sheets). TA → EEM (Selection Report). EEM → DA or EXCO (sign-off or Deviation Motivation). DA → TA (approval with reasons). TA → VV and FM (final checks).

Watch. Scoring after the panel has discussed a candidate destroys the independence that makes the process defensible. Collect score sheets before discussion opens, and keep them even when calibration changes a score.



Phase 5 — Offer, contracting and onboarding

Phase 5 turns an approved selection into a lawful engagement. The offer is always conditional; the medical assessment, where justified, comes after it; the contract follows the engagement type; and onboarding starts the probation clock. The four engagement tracks share steps 5.1–5.6. Track 5D is now driven by Module A; driver onboarding by Module C.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.1 Conditional offer	Approval received.	Written offer, expressly conditional on each outstanding item: medical fitness (where justified), criminal and credit checks, qualifications, references, **a valid visa or permit authorising this position with this employer** (A.7), and for driving roles **a valid licence and PrDP and no unresolved enforcement order** (C.8). State that the offer lapses or may be withdrawn if a condition is not met, and the acceptance deadline.	TA	Within 2 working days of approval (BP)	RS31 (L6)	CL: *Wyeth* (LAC 2005)
5.2 Post-offer medical assessment	Offer accepted; medical justified.	Only after a conditional offer, limited to fitness for the inherent requirements; by an OHP; no HIV testing without a court order. For drivers, fitness for the licence and PrDP category. Consider reasonable accommodation first.	OHP, TA	Before start	OHP report	EEA s.7; Disability Code; OHSA / MHSA where required
5.3 Withdrawal (if a condition fails)	Condition not met.	Put the finding to the candidate first (step 3.7). If still unmet, withdraw in writing with the reason and the condition relied on. LA review, because after acceptance withdrawal may be a dismissal.	TA, LA	Promptly	RS32 (L7)	CL: *Wyeth*; LRA s.186(1)
5.4 Pay-equity check	Before contract.	Confirm remuneration against employees doing the same or similar work, or work of equal value; record any justified differential. Foreign nationals on no less favourable terms than comparable citizens.	FIN, TA	Before contract	RS31	EEA s.6(4)–(5); EE Regulations, 2025 equal-value provisions (the 2014 Regulations are repealed; verify regulation numbers)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.5 Unsuccessful candidates	Offer accepted.	Regret letters to all shortlisted candidates (BP 5 working days); internal candidates offered feedback without disclosing others' scores or special personal information. For preferential posts, factual, non-stigmatising language.	TA, LM	Within 5 working days (BP)	RS33; RS34	POPIA s.26; BP
5.6 Access requests	Candidate requests records.	Respond to PAIA and POPIA access requests within the statutory time, including any request for the logic of an automated decision.	IO	PAIA: 30 days, extendable once by 30 days	RS34	PAIA ss.50, 56, 57; POPIA ss.23, 71(3)

Candidate correspondence register

Letter	Sent when	Required contents	Form
L1 Acknowledgement	Within 2 working days of receipt	Reference; closing date; timeline; privacy notice link; how automated tools are used and how to ask for human review	RS16
L2 Invitation to assessment	≥ 5 working days before	Date, format, duration; what is assessed; whether AI scores any part; accommodation offer and non-AI alternative	RS22
L3 Invitation to interview	≥ 5 working days before	Date, panel roles, format, accommodation; documents to bring (ID, certificates, passport and visa or permit, licence and PrDP for driving roles)	RS25
L4 Consent request	At shortlist	Each check named; purpose; vendor; retention; right to decline and consequence; driver-record consent for driving roles (RS52)	RS20; RS52
L5 Adverse-finding letter	On any discrepancy	What was found and from which source; opportunity to explain within a stated period (BP 3 working days)	RS21
L6 Conditional offer	Within 2 working days of approval	Post, grade, pay, start date, engagement type; every condition, including visa and driving conditions; lapse and withdrawal clause	RS31
L7 Withdrawal of offer	If a condition fails	The condition relied on; the finding; that representations were considered	RS32



Letter	Sent when	Required contents	Form
L8 Regret (external)	Within 5 working days of acceptance	Outcome; retention period; how to request access or a human review of any automated step	RS33a
L9 Regret (internal) with feedback offer	Within 5 working days of acceptance	Outcome; feedback offer; for preferential posts, "the appointment was made in line with the requirements of the post and [Employer]'s Employment Equity Plan"	RS33b
L10 Appointment and contract	Before start	BCEA s.29 particulars; probation; development plan (Model 3); POPIA employee notice; driver duties (Module C); visa conditions (Module A)	RS35–RS37

Track 5A — Permanent employment

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5A.1 Contract	Conditions met.	Written particulars: parties, workplace, start date, job title and description, hours, pay, deductions, leave, notice, collective agreements, and any restraint or confidentiality clause where justified. For driving roles add the driver clauses from the GBS AARTO flow step 0.7.	TA, LA	On or before start	RS35	BCEA s.29
5A.2 Probation terms	Contract drafted.	Reasonable period; purpose (performance and suitability); guidance, training and evaluation; representations before any extension or dismissal. Model 3 appointees get the written plan and support promised.	TA, LM	In contract	RS35; RS40	Code: Dismissal 2025 items 14–18

Track 5B — Fixed-term employment

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5B.1 Justification test	Earnings at or below the BCEA threshold (R269 600.90 a year) and term longer than 3 months.	Record a justifiable reason (s.198B(4)): replacing an absent employee; a temporary increase in work not expected to last more than 12 months; a student or recent graduate being trained; work exclusively on a specific project of limited or defined duration; a non-citizen granted a work permit for a defined period (Module A); seasonal work; a public works scheme; externally funded work; an employee beyond normal retirement age; or another justifiable reason. Without one, the employee is deemed indefinite. Section 198B does not apply to employers excluded by s.198B(2) (for example fewer than 10 employees) or where a statute, sectoral determination or collective agreement permits the fixed term.	TA, LA	Before contract	RS36	LRA s.198B(2)–(5)
5B.2 Contract	Reason recorded.	Reason stated in writing; no less favourable treatment unless justified; equal access to vacancies; if longer than 24 months, one week's pay per completed year on expiry unless employment is offered or procured.	TA	Before start	RS36	LRA s.198B(6), (8)–(10)
5B.3 Expectation management	Renewal or expiry approaches.	Diarise expiry; do not create an expectation of renewal or permanence without meaning it.	TA, LM	1 month before expiry (BP)	RS36	LRA s.186(1)(b)



Track 5C — TES placement

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5C.1 Engage a registered TES	Temporary service needed.	Registered TES on an agreement meeting step 0.11. The TES carries the right-to-work check for its workers but the client must also satisfy itself: a person in control of premises where an illegal foreigner is found employed is presumed to employ them (Immigration Act s.38(5)). TES drivers are subject to Module C before driving.	TA, LA	Before placement	RS06; RS37	LRA ss.198(4A)–(4F)
5C.2 Three-month rule	Placed worker at or below the threshold.	Up to three months, a substitute for an absent employee, or a determined category; after that, deemed the client's employee on an indefinite basis and treated no less favourably. Ending a placement to avoid deeming is a dismissal.	TA	Diarise day 90	RS37	LRA s.198A(1)–(5); CL: *Assign Services v NUMSA* (CC 2018)
5C.3 Joint liability	During placement.	Client and TES are jointly and severally liable for certain contraventions; monitor compliance.	TA, FIN	Monthly (BP)	RS37	LRA s.198(4)

Track 5D — Foreign national

Track 5D runs the offer-to-start steps of Module A (A.6–A.12). In summary: no start before the visa or permit is produced and checked; the position worked must match the endorsement; terms no less favourable than comparable citizens; asylum-seeker letter within 14 days of start; expiry diarised; and any change of role, employer entity or conditions cleared before it happens.



Onboarding

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.7 Payroll, tax and statutory registration	Contract signed.	Payroll; SARS tax number; UIF declaration; COIDA coverage (GBS COIDA flow); fund enrolment. Foreign nationals: tax number and UIF status per current rules (verify).	PAY	Before first pay	RS39	UI Act; UICA (verify); COIDA
5.8 Driving roles	Employee will drive or control a vehicle.	Run Module C steps C.9–C.11: driver particulars, licence and PrDP copies, vehicle allocation and driver agreement before the first authorisation to drive (GBS AARTO flow steps 0.5–0.7). The contract gives notice of future demerit checks only; an AARTO 27 is signed for each check once demerits commence (s.33(2)).	HR, FM, ACO	Before first drive	RS54; AARTO G02	AARTO Act s.17(5) (AARTO municipalities; BP elsewhere)
5.9 Structured induction	Day 1.	EE policy, code of conduct and disciplinary code (GBS Misconduct flow), whistleblowing (GBS PDA flow), the GBS AI Policy and acceptable use, buddy or mentor; accommodation plan in place on day 1.	LM, TA	Day 1 to week 2	RS39	Disability Code; Code on HR Policies
5.10 30/60/90-day check-ins and probation reviews	From start.	Documented reviews with guidance and support; development plan for Model 3 and succession appointees; representations before any extension or dismissal (GBS Incapacity flow track 2A.10).	LM	Day 30, 60, 90 (BP)	RS40	Code: Dismissal 2025 items 14–18
5.11 Close the recruitment file	Start plus 10 working days (BP).	Complete RS41; capture the movement for EEA2/EEA4 (including foreign-national counts and any deviation, RS50); file RS57 human-review logs; set the retention date.	TA	Within 10 working days of start (BP)	RS41	EEA ss.21, 26, 27; POPIA s.14

Candidate and new-employee obligations at this stage. Accept or decline by the deadline; produce the documents required by the conditions (visa or permit, certificates, licence and PrDP); attend the medical assessment if justified; disclose restraints; complete driver particulars before driving; attend induction and reviews.



Watch. An offer letter that says "you are appointed" and then lists checks "to follow" is unconditional in substance. The conditions must be written as conditions, with the consequence of failure stated, and a foreign national must not start "pending" a visa.

Phase 6 — Governance, reporting and learning

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.1 Funnel monitoring	Quarterly.	Report to the EE forum by designated group at each stage: applicants → long-list → shortlist → appointable → appointed. Identify where designated candidates drop out and why.	EEM, TA	Quarterly	RS42	EEA ss.13, 16; Reg 8(3)–(4)
6.2 Adverse-impact audit	Annually, and on any new tool.	Selection-rate comparison by race, gender and disability for each assessment tool, each AI tool and the ATS (D.11); act on disparities.	TA, PSY, AIO	Annually	RS04; RS56	EEA s.8(c); POPIA s.71
6.3 EE reporting	Reporting cycle.	Appointments, promotions and terminations feed the EEA2; income differentials the EEA4. 2026 cycle: online 1 September 2026 to 15 January 2027; manual submissions closed 1 October 2026. First cycle assessed against annual targets. Reasons for not meeting targets are drawn from the deviation register (B.14).	EEM	Per DEL cycle	EEA2; EEA4	EEA ss.21, 27; Reg 9(13)
6.4 Regulation 16(5) evidence file	Each vacancy where a target was not met.	Collate Designation Decision Records, pool analyses, Deviation Motivations, re-advertising records and the deviation register.	EEM	Continuous	RS14; RS48–RS50	Reg 16(5)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.5 s.53 compliance certificate	State contract bid planned.	Needs: the latest s.21 report submitted; sectoral targets met or a Reg 16(5) ground shown; no CCMA or court finding of unfair discrimination, and no CCMA national minimum wage award, against the employer in the previous 12 months (so a recruitment discrimination finding costs the certificate). Valid for 12 months from issue or until the next s.21 report is due, whichever is longer.	EEM, LA	Before bid	Certificate	EEA s.53(6); Reg 16(7)
6.6 Retention of appointees	Ongoing.	Track retention of designated appointees; exit data in the barrier analysis.	EEM, TA	Quarterly	RS42	Reg 8(3)–(4)
6.7 Foreign-national register review (new)	Quarterly.	Review RS47: visa expiries in the next 6 months; role changes; asylum endorsements; skills-transfer progress; B16-2026 readiness.	LA, TA	Quarterly	RS47	Immigration Act s.38; DRAFT B16-2026
6.8 Driver-role review (new)	On each AARTO proclamation; annually.	Update the driving-role list and checks as AARTO phases commence; prepare for demerit commencement (GBS AARTO flow step 6.7).	FM, ACO, HR	On change	RS51	AARTO Act ss.24–28 (DRAFT, not commenced)
6.9 Policy refresh and legislative watch	Annually or on change.	Review against new case law, the Part B, BUSA and DA judgments, GN 7719 once final, B16-2026 once enacted, the Phase 3 AARTO proclamation, any Information Regulator AI guidance, BCEA threshold and NMW changes.	LA, TA	Annually	RS01	BP
6.10 Board reporting	Quarterly.	Time to hire; funnel by group; deviations; disputes; adverse-impact findings; foreign-national exposure; AI tool performance; progress against annual targets.	TA, EEM	Quarterly	RS42	Governance

Per-vacancy compliance checklist (RS41)

Gate	Check before moving on
Before advertising	Designated status confirmed. Current, consulted EE plan aligned to sectoral targets; correct sector. Impact Note uses the correct target set and dated data. Inherent requirements with s.20 equivalents. Designation Decision Record signed with a pool analysis. Variable Gates Record (RS60) signed: A, B, C, D each answered and owners named.
Advertising and applications	Advert states requirements, EE position, accessibility, POPIA notice, conditional checks, right-to-work statement, driving requirements (driving roles only) and AI notice (if tools used). AI-drafted advert reviewed (RS59). Targeted channels for preferential posts; local-search record started. EEA1 voluntary and kept away from AI tools.
Selection	Two screeners; reasons recorded. Every automated rejection reviewed by a human (RS57). Psychological and AI assessments meet EEA s.8. No medical testing before a conditional offer. Panel diverse; declarations signed; structured guide used; prohibited topics avoided. Weights and EE model fixed before scoring; calibration recorded with an adverse-impact check.
Decision and offer	Selection Report complete; EE sign-off or approved Deviation Motion on file and entered in RS50. Approver's reasons engage with the panel. Right to work verified for this position (RS43); driver checks complete for driving roles (RS53). Offer expressly conditional. Pay-equity check done.
After appointment	Driver particulars before first drive. Asylum letter within 14 days where relevant. Visa expiry diarised. Movement captured for EEA2/EEA4. File archived with a retention date. Funnel metrics reported.

Module A — Foreign nationals

Module A opens when Gate A is answered "yes" at step 1.11: the role is open to foreign applicants, a foreign-national candidate is known, or an agency or TES may supply one. It applies the law in force on 19 October 2026. It does not apply the Employment Services Amendment Bill [B16-2026], which is a DRAFT; the readiness note at the end of this section sets out what to prepare. A standalone GBS Foreign National Compliance flow is **planned** for when the Bill is final; until then, this module is the GBS procedure.



The legal frame in force.

- **Immigration Act 13 of 2002, s.38.** No person may employ an illegal foreigner, a foreigner whose status does not authorise employment by that person, or a foreigner in a capacity not in accordance with their status (s.38(1)). An employer must make a good-faith effort to ascertain that it employs no illegal foreigner and to establish the status or citizenship of those it employs (s.38(2)). Knowledge is presumed once illegal employment is shown unless the employer proves good faith and compliance with s.38(2); stricter compliance is required of an employer with more than five employees or a previous conviction (s.38(3)). The employer must keep the prescribed records for two years after the employment ends and report to the Department the end of the employment and any breach of status (s.38(4)). A person in control of premises where an illegal foreigner is found employed is presumed to employ them (s.38(5)). Knowingly employing an illegal foreigner, or a foreigner in breach of the Act, is an offence: a fine or up to one year on a first conviction, up to two years or a fine on a second, and up to five years without the option of a fine on a third or later conviction (s.49(3)).
- **Immigration Regulations, 2014 as amended.** Since 9 October 2024 (Third Amendment), general work and critical skills work visas are assessed on a 100-point system: occupation on the Critical Skills List (100 points); qualifications; experience; official-language proficiency; income bands; and an offer from an employer in the Trusted Employer Scheme (30 points; phase II window 20 July – 4 September 2026; verify the directive number, reported as Immigration Directive 10 of 2024). Secondary sources report that points-based applicants no longer need the DEL recommendation letter for a general work visa (verify on the DHA checklist). Record-keeping and termination reporting are statutory duties under s.38(4) of the Act (above).
- **Critical Skills List.** GN R3934, GG 49402, 3 October 2023, remains the operative list; no new list was published in 2026. A critical-skills applicant needs a job offer from an employer that is verifiable and in good standing with DEL, and professional-body confirmation; since 8 October 2024 a visa can be issued for 12 months while a SAQA evaluation is pending.
- **Refugees Act 130 of 1998 as amended.** An asylum seeker may work only if the right to work is endorsed on the asylum seeker visa after the s.22(6) assessment; it may not be endorsed for an applicant who can support themselves or is supported by UNHCR or a charity (s.22(8)). The employer must give the Department a letter of employment in the prescribed form (Form 6 of the Refugees Regulations) within 14 days of the person starting work (s.22(9)); failure, or a fraudulent letter, is an offence with a fine of up to R20 000 (s.22(10)). The endorsement is revoked if the holder cannot prove employment within 6 months (s.22(11)). A recognised refugee may seek employment (s.27(f)).
- **Employment Services Act 4 of 2014.** An employer may not employ a foreign national before the person produces an applicable and valid work permit issued under the Immigration Act (s.8(1)), and may not require or permit a foreign national to do work the permit does not authorise or to work contrary to its terms (s.9(1)). An employee employed without a valid permit may still enforce

any claim against the employer (s.8(4)). Section 8(2) allows the Minister to make regulations requiring employers to be satisfied that no suitably skilled person in South Africa is available, to use public or private employment services, and to prepare a skills-transfer plan; no final regulations imposing these duties were identified (verify). "Foreign national" excludes permanent residence permit holders (s.1).

- **Equal treatment and fair process.** A foreign national is protected by the EEA and LRA like any other employee; nationality and citizenship discrimination must be justified (CL: *Larbi-Odam*, CC 1997, on permanent residents). A contract with a worker who lacks a valid permit is not void for LRA purposes (CL: *Discovery Health v CCMA*, LC 2008).
- **EE interplay.** Foreign nationals, permanent residents and citizens naturalised after 26 April 1994 (unless apartheid policies prevented earlier naturalisation) are not members of the designated groups (EEA s.1). They are reported in the EEA2 as foreign nationals and do not advance any target. An appointment to a preferential post is a deviation (Module B).

Status and visa types: what each allows

Status or visa	What it allows	What the employer checks	Watch
South African citizen; permanent residence permit holder	Unrestricted work; not a "foreign national" for ESA s.8	ID or PR permit; verify PR permit authenticity if doubtful	Do not exclude PR holders (CL: *Larbi-Odam*)
General work visa (Immigration Act s.19)	Work for the employer and in the position endorsed	Visa label: employer, position, conditions, expiry; points-based approval	Change of employer or role needs a new or amended visa before the change
Critical skills work visa (s.19)	Work in the listed critical skill; up to 5 years; may be 12 months pending SAQA	Visa; occupation matches the list and the job; professional-body confirmation	Role must stay within the critical skill; check any 12-month conditions
Intra-company transfer work visa (s.19)	Work for the local branch, subsidiary or affiliate named; up to 4 years; not renewable	Visa; prior service with the foreign group (6 months); skills-transfer plan	Cannot be used for local hires; plan the end date from day 1
Corporate visa (s.21)	Corporate applicant employs a fixed number of foreigners under one visa	Corporate visa approval and the individual's corporate worker authorisation	Little used; proposed for replacement in the Revised White Paper (DRAFT)
Business visa (s.15)	Running the holder's own business; 60% local staff requirement	Not a basis for employment by another employer	Do not hire a business-visa holder as an employee



Status or visa	What it allows	What the employer checks	Watch
Study visa (s.13)	Limited part-time work (20 hours a week, verify)	Visa and conditions; hours	Track hours; no full-time employment
Spousal or relative visa (s.11(6) and related)	Work only if endorsed	Endorsement wording	No endorsement, no work
Visitor visa with s.11(2) authorisation	Specific short-term work, about 90 days	The s.11(2) letter and dates	Not employment; cannot outlast the visa
Remote work visa	Working remotely for a foreign employer	Not a basis for local employment	Do not employ locally on this visa
Asylum seeker visa (Refugees Act s.22)	Work only if the right is endorsed	Endorsement and expiry; renewal dates	Form 6 letter within 14 days of start; endorsement lapses if no employment within 6 months
Refugee status (s.27(f))	May seek employment	Refugee status document and expiry	Status documents expire; diarise renewal
Exemption permits (ZEP, LEP and similar)	Work while the exemption is valid	Permit and the latest ministerial extension	Validity depends on current directives and litigation; check before relying (verify)

Step table

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
A.1 Open the module	Gate A "yes" at 1.11.	Record why: open market, known candidate, agency or TES supply, ICT transfer. Record whether the employer will sponsor a visa for this post (policy 0.16) and name the LA or IMM owner.	TA, LA	Day 8 (BP)	RS60; RS43	Immigration Act s.38(2); BP
A.2 Advert wording	Advert drafted.	"Appointment is subject to the right to work in South Africa." Where sponsorship is available, say so; where not, say "candidates must hold the right to work for this position at the start date". No exclusion of permanent residents; no nationality preference.	TA, LA	With 2.2	RS15	ESA s.8; EEA s.6; CL: *Larbi-Odam*

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
A.3 Local-search record	Advert published.	Keep: each advert with dates and channels (including ESSA); applicant numbers; why each suitable citizen or PR applicant was or was not appointed. Needed now for some visa applications and for corporate visas, and the core of B16-2026 readiness.	TA	From day 10 to offer	RS44	Immigration Regulations (verify); DRAFT B16-2026
A.4 Status question at application	Applications received.	Ask one proportionate question: "Do you have the right to work in South Africa for this position? If not, will you need a visa?" Record the answer; do not ask for passports at this stage. Do not screen out on nationality; screen out only where policy says the employer will not sponsor and the candidate cannot start lawfully by the start date.	TA	With 3.1	RS19; RS43	POPIA s.10; ESA s.8
A.5 Right-to-work verification	Shortlist, and again before offer.	Inspect originals (passport and visa label, permit or asylum document). Check: type; employer named; position or occupation; conditions; validity to the start date and beyond. Verify authenticity with DHA through the available verification channel, or through an IMM, and keep proof of the request and answer: this is the s.38(2) good-faith record. For asylum seekers confirm the work endorsement.	TA, LA, IMM	Before the offer	RS43	Immigration Act s.38(1)–(3); Refugees Act s.22(6), (8); ESA ss.8(1), 9(1)
A.6 Sponsorship decision	Preferred candidate lacks status for this job.	If policy allows and the DA approves: choose the route (critical skills if the occupation is listed; general work on points; ICT for a group transfer); prepare the offer and employer documents (proof of good standing, contract, skills-transfer plan where required); set a realistic start date. If not, record the reason and move to the reserve.	LA, IMM, DA	Before offer	RS43; RS45	Immigration Act s.19; Regulations (points); Directive 10 of 2024
A.7 Conditional offer	Approval received.	Offer conditional on the person holding, by the start date, a visa or permit authorising this position with this employer. No start, induction or paid work before production (ESA s.8(1)).	TA	With 5.1	RS31	ESA s.8(1); CL: *Wyeth*
A.8 Contract and equal terms	Visa produced and verified.	Position, employer entity and work location match the endorsement; terms no less favourable than comparable citizens (pay-equity check 5.4); skills-transfer plan for ICT and where policy requires; clause requiring the employee to keep status valid and report any change.	TA, LA	Before start	RS35; RS45	ESA s.9(1); EEA s.6

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
A.9 Asylum-seeker letter	Asylum seeker with endorsed work right starts.	Submit the employment letter (Form 6) to the Department within 14 days of the start date; keep proof.	TA	Start + 14 days	RS46	Refugees Act s.22(9)–(10)
A.10 Records and expiry diary	Start.	File copies and verification proof; enter on RS47 with expiry, conditions and renewal lead time (BP: start renewal 6 months before expiry). No change of role, location or employer entity until status covers it. Keep the prescribed records for 2 years after the employment ends; report the end of employment and any breach of status to DHA.	TA, LA	Start; monthly review	RS47	Immigration Act s.38(4)
A.11 Status lapses or is refused	Expiry approaching without renewal, or refusal.	Stop the unauthorised work from the lapse date; consider unpaid leave pending renewal where lawful; if status cannot be regained, end employment through a fair procedure (legal impediment, with representations); pay what is owed (ESA s.8(4)). Route through LA and the GBS Incapacity or Operational Requirements flows as appropriate.	LA, TA, LM	Before the lapse date	RS47	Immigration Act s.38; CL: *Discovery Health* (LC 2008)
A.12 Reporting	EE cycle; quarterly.	Report foreign nationals in the EEA2 as required; any appointment to a preferential post is in the deviation register (RS50). Quarterly review of RS47 (step 6.7).	EEM, TA	Per cycle	EEA2; RS50	EEA s.21; Reg 16(5)

Integration into the main phases

Phase	Step	What Module A adds
Phase 1	1.1, 1.11	Known foreign candidate declared; Gate A answered; sponsorship position recorded
Phase 2	2.1, 2.2, 2.5	ESSA and local channels; right-to-work statement; local-search record starts
Phase 3	3.1, 3.6	Status recorded, not scored; documents verified at shortlist; DHA verification proof
Phase 4	4.8, 4.10	Visa covers this position confirmed before offer; preferential post → deviation route



Phase	Step	What Module A adds
Phase 5	5.1, 5.4, Track 5D	Visa condition in the offer; equal terms; no start before production
Onboarding and Phase 6	5.11, 6.7	Asylum letter; expiry diary; quarterly review; EEA2

Readiness note — Employment Services Amendment Bill [B16-2026] (DRAFT)

The Bill was introduced in the National Assembly in 2026 (prior notice of introduction in GG 54759, 29 May 2026) to implement the National Labour Migration Policy. The Portfolio Committee called for comment on 18 September 2026; public comment closes on **6 November 2026**. It is **not law** and may change. As introduced it would: require an employer, before recruiting a foreign national, to be satisfied in a prescribed manner that no one other than a foreign national in South Africa has the necessary skills (proposed s.12A); require a skills-transfer plan for any position held by a foreign national, with ministerial exclusions; allow the Minister to set maximum foreign-national quotas by sector, occupation, region or nationally after a 30-day comment period, with small employers (generally fewer than 10 employees) excluded and exemptions under a new s.49A (proposed s.12B); require terms not inferior to those of South African citizens and retention of visa and right-to-work records (proposed s.12A(2)(d)–(e)); prohibit requiring or permitting work outside a visa's scope (proposed s.12E); allow inspectors and bargaining council agents to enforce claims (proposed s.12D); and set penalties, per employer and per contravention of proposed ss.12A, 12B(8) and 12E (proposed s.49(2A)), of R100 000 for a first contravention, R200 000 for a repeat within three years, and the greater of R1 million or 10% of turnover for further contraventions. It would repeal ESA ss.8–9 and re-enact their content in the new Chapter 3A (the s.8(4) claims rule moving to proposed s.12D); until then ss.8–9 remain the law. The 2022 draft's deeming of digital labour platforms as employers has been removed.

Readiness action (BP)	Why
Inventory foreign nationals by occupation, level, visa type and expiry (RS47)	Quotas would apply by sector and occupation; you need the baseline
Run the local-search record (RS44) for every post where a foreign national is shortlisted	Proposed s.12A test; also strengthens current visa applications



Readiness action (BP)	Why
Adopt a skills-transfer plan template (RS45) and use it now for ICT and critical-skills appointees	Proposed universal duty; already required for ICT visas
Model quota exposure once draft notices appear; decide on exemption applications	Proposed s.12B and s.49A
Comment on the Bill by 6 November 2026 through the client's business association if affected	Interaction with EE targets and sectors is unresolved (section 20)
Diarise the standalone GBS Foreign National Compliance flow for when the Act is final	This module will then point to it

Candidate obligations. Answer the status question truthfully; produce original documents; keep status valid; report any change in status, conditions or expiry; not work outside the visa's terms.

Hand-offs. TA → LA or IMM (verification, sponsorship). LA → DHA (verification request; asylum letter). LA → DA (sponsorship approval). TA → EEM (preferential-post deviation). TA → PAY (equal terms).

Watch-points.

- A foreign national who "starts on Monday while the visa is processed" is employed unlawfully from Monday; the offence is the employer's.
- A visa endorsed for a named employer entity does not cover work for a sister company or a client placement.
- Asylum-seeker documents expire often; the 14-day letter is a separate duty from checking the endorsement.
- Exemption-permit dispensations (for example ZEP and LEP) depend on the latest ministerial directive and litigation; never rely on a dispensation without checking the current date.
- B16-2026 is a draft. Do not tell candidates or managers that quotas or the local-search test are law.



Module B — EE plan targets and deviations

Module B opens when Gate B is answered "yes": an EE target is at stake at the occupational level of the vacancy (path (b) or (b)+(c)), or the pool analysis shows that the outcome may depart from the target direction even on an open post. It turns the designation into a pre-agreed decision route so that a deviation, if it happens, is lawful, approved, recorded and reported.

The legal frame. The Minister's sectoral numerical targets (s.15A; GN 6124, GG 52514, 15 April 2025) apply to the four upper occupational levels per sector and set a 3% disability target; the EE plan's annual targets must align with them (s.20(2A)) and set numerical goals for other levels. Affirmative action measures exclude quotas (s.15(3)) and need not create absolute barriers (s.15(4)). "Suitably qualified" is broad (s.20(3)–(5)). Compliance is assessed by the Director-General, who must consider whether the employer has a reasonable justification for not meeting targets (s.42 as amended); the EE Regulations, 2025 list seven reasonable grounds (Reg 16(5)) and tie the s.53 compliance certificate to them (Reg 16(7)).

Status of the court challenges (searched 19 October 2026).

Challenge	Position	Effect today
NEASA and Sakeliga, Part A (urgent interdict)	Dismissed, Gauteng High Court, 28 August 2025; leave to appeal refused by the High Court (16 October 2025), the SCA (13 March 2026) and the Constitutional Court (reported 31 May–1 June 2026)	No suspension; targets apply
NEASA and Sakeliga, Part B (constitutional review of s.15A and the targets)	Pending in the High Court; the Department opposes	None until judgment
BUSA review of the sectoral targets	Filed September 2025 (reported variously as High Court and Labour Court; verify forum); pending	None until judgment
DA challenge	Filed in the High Court in 2025; pending (verify)	None until judgment



Challenge	Position	Effect today
Department of Employment and Labour	Implementing the Regulations and targets; first assessment against annual targets in the 2026 reporting cycle	Comply; record justifications

Case law that shapes the deviation route.

- **Solidarity obo Benjamin v Department of Correctional Services (LC, June 2026, non-reportable).** The panel's top candidate was refused because the appointment would not advance national targets. The court held the decision irrational and unfair: the decision-maker did not engage with the panel's recommendation, relied solely on numerical targets, used national figures where the plan also had regional targets, and did not consider whether a suitable under-represented candidate was realistically available before re-advertising. Targets should have been "a neutral factor" with merit decisive. Award: 12 months' compensation. Lesson: the pool analysis and the deviation route must exist **before** the decision, and the approver must engage with the panel in writing.
- **Moses Kotane Institute v Mzimele (LAC 2026).** A gender requirement introduced after interviews, by an employer with no EE plan, was unfair discrimination and an absolute barrier to male candidates. Press reports refer to a damages award of about R4.52 million; verify the LAC's final order on damages before citing it. Lesson: the model cannot be changed after the advert.
- **Eskom Holdings v Solidarity obo Erasmus [2025] ZALAC 55 (LAC, 5 November 2025).** The LAC overturned a Labour Court finding of race discrimination: a known pipeline practice tied to EE targets was a rational restitutionary measure, and it was not an absolute barrier because non-designated candidates could still be motivated, shortlisted and interviewed. Lesson: preference is defensible when it is target-linked, documented and leaves others able to compete; write the pipeline into the plan or policy so it can be proved.
- **Barnard (CC 2014), Solidarity v DCS (CC 2016), Van Heerden (CC 2004).** Measures must be rational, plan-based and not rigid quotas.

What counts as a deviation

Situation	Deviation?	Route
Preferential post; no target-group candidate at or above the threshold; best appointable candidate from a non-target or over-represented group appointed	Yes	B.9–B.12
Open post; appointment increases over-representation at a level where Reg 9(10) applies	Yes (record)	B.9; usually DA tier
Preferential post; foreign national appointed	Yes	B.9 and Module A
Preferential post; permanent resident, or citizen naturalised after 26 April 1994 who does not meet the EEA s.1 test, appointed	Yes	B.9
Preferential post; decision not to re-advertise after a failed targeted search	Yes	B.9; record the operational reason
Target-group candidate appointed under Model 2 or 3 as designated	No	EE sign-off RS29
Changing the EE model, or introducing preference, after the advert	Not a deviation: prohibited	Stop; re-advertise (CL: *Moses Kotane*)
Appointing below the threshold "for EE"	Not a deviation: prohibited	Stop (s.20(3); s.15(3))

Who may approve a deviation (BP — set in the delegations, step 0.4)

Occupational level	Approver	Must be consulted or informed
Top management	Board or its HR/Remuneration and Social and Ethics committee chair	EEM (prepares), LA (reviews), CEO; EEF informed at next meeting



Occupational level	Approver	Must be consulted or informed
Senior management	CEO or EXCO	EEM, LA; EEF informed
Professionally qualified and skilled technical	DA one level above the usual appointing authority	EEM; LA for contested cases; EEF informed quarterly
Lower levels	Usual DA	EEM sign-off; EEF informed quarterly
Any level, where the approver is the hiring manager or was on the panel	Escalate one level	Independence of the approver

The EE forum is **informed**, not asked to approve: it is consulted on the plan and its implementation (ss.16–17), and the quarterly deviation report is part of that consultation.

Evidence for a Deviation Motivation (RS48)

- The Designation Decision Record and Impact Note (date earlier than the advert), with the target set and data date.
- The pool-availability analysis (RS49): applicants by group at each stage; external availability (EAP for the level and region; sector supply such as graduates and professional-body registrations); the targeted channels used and their yield.
- The Selection Report: scores, threshold, and why each target-group candidate was or was not appointable, by competency.
- Alternatives considered: Model 3 development appointment; re-advertising (with cost and delay); internal pipeline; interim acting arrangement.
- Operational impact of not appointing (safety, service, revenue, statutory roles), quantified where possible.
- The Reg 16(5) ground relied on, by paragraph: (a) insufficient recruitment opportunities; (b) insufficient promotion opportunities; (c) insufficient target individuals from designated groups with the relevant formal qualifications, prior learning, experience or capacity to acquire the ability within a reasonable time (s.20(3)–(5)); (d) the impact of a CCMA award or court order; (e) a transfer of a business; (f) mergers or acquisitions; (g) the impact of economic conditions on the business.
- Corrective action: what will be done at the next vacancy at that level or in the pipeline, by whom and by when.



Step table

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
B.1 Confirm target set and sector	Phase 0; each reporting cycle.	Confirm sector, the plan's annual targets for each level, and whether national, regional or plan-specific figures apply.	EEM	Annually	RS03	EEA ss.15A, 20(2A); Reg 9(7)(c)
B.2 Impact Note	Level confirmed.	Gap to annual and sectoral targets for each group at this level; over-representation (Reg 9(10)).	EEM	Day 3 (BP)	RS11	Reg 9(10), 9(13)
B.3 Gate B	Step 1.11.	Is a target at stake? Is a deviation foreseeable? Record the answer and the deviation tier that will apply.	EEM, TA	Day 8 (BP)	RS60	BP
B.4 Pool-availability analysis	Before designation.	Realistic availability of suitably qualified target-group candidates (internal pipeline, external supply, previous campaigns at this level). If the pool is unrealistic, consider an open designation with targeted sourcing, or Model 3, rather than a preferential designation that will predictably end in deviation.	EEM, TA	Before 1.9	RS49	CL: *Benjamin*; s.20(3)–(5)
B.5 Designation and model	Pool analysis complete.	Path and model (1, 2 or 3) fixed and signed; deviation route and tier written on RS14.	EEM, DA	Before advert	RS14	EEA s.15; CL: *Moses Kotane*
B.6 Targeted sourcing	Advert approved.	Targeted channels and agency briefs; preference wording; record the yield of each channel.	TA, EEM	Phase 2	RS15; RS49	Code on HR Policies item 7
B.7 Pool check before interviews	Long-list complete.	If no target-group candidate meets the minimums: decide positively — re-source now (extend the closing date or targeted search) or proceed and record that a deviation is likely.	EEM, DA	Before interviews	RS14; RS49	Reg 16(5)(c); CL: *Benjamin*
B.8 Apply the model	Calibration complete.	Apply only the pre-set model to the appointable list.	PNL, EEM	At 4.7	RS26	s.15(3)–(4)
B.9 Deviation trigger and motivation	Recommendation departs from the designation.	EEM prepares RS48 with the evidence listed above within 2 working days; LA reviews.	EEM, LA	2 working days (BP)	RS48	Reg 16(5)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
B.10 Approval at the right tier	RS48 complete.	Approver decides in writing, engaging with the panel's reasons and the motivation: approve, refer back for re-sourcing, or approve a Model 3 alternative.	Approver per tier	3 working days (BP)	RS48	CL: *Benjamin*
B.11 Register and file	Decision made.	Enter on the deviation register (RS50): vacancy, level, groups, target gap, decision, ground, approver, date, corrective action, due date. File in the Reg 16(5) evidence file (6.4).	EEM	Same day	RS50	Reg 16(5); EEA s.26
B.12 Follow-through	Re-advertising or corrective action decided.	Actually re-advertise or carry out the corrective action by the due date; record completion (in *Benjamin* the promised re-advertisement never happened).	TA, EEM	Per RS50	RS50	CL: *Benjamin*
B.13 Quarterly forum report	Quarter end.	Report deviations by level and ground, with corrective actions, to the EE forum; record its input.	EEM	Quarterly	RS42; RS50	EEA ss.16, 17
B.14 Annual EE report	Reporting cycle.	Use RS50 to complete the EEA2 progress against annual targets and the reasons for not meeting them; keep the evidence file for a DG review (s.43–45) and the s.53 certificate.	EEM	2026 cycle: online by 15 January 2027	EEA2; EEA4; RS50	EEA ss.21, 42–45, 53; Reg 16(5), 16(7)

Integration into the main phases

Phase	Step	What Module B adds
Phase 1	1.3, 1.9, 1.11	Impact Note with target set; pool analysis; model and deviation tier fixed before the advert
Phase 2	2.1, 2.2	Targeted channels; preference wording; yield tracked
Phase 3	3.3	Designated-pool check and re-source decision before interviews
Phase 4	4.7, 4.10–4.12	Pre-set model only; Deviation Motivation and tiered approval; re-advertising followed through



Phase	Step	What Module B adds
Phase 5	5.5	Non-stigmatising regret wording; development plan for Model 3
Phase 6	6.1, 6.3, 6.4	Deviation register to forum, EEA2 and Reg 16(5) file

Candidate obligations. None specific. Candidates may decline to disclose EE status (EEA1 is voluntary); a candidate who does not disclose, or who does not meet the s.1 citizenship test, is not treated as a target-group candidate for Model 2.

Hand-offs. EEM → DA or EXCO (motivation). LA → approver (review). EEM → EEF (quarterly report). EEM → TA (re-advertise). EEM → DEL (EEA2).

Watch-points.

- The approver must write reasons that engage with the panel's ranking; "not in line with targets" is not a reason.
- A deviation register that is completed only at report time will not match the file dates; complete it the same day.
- Check that the Impact Note's target set matches the plan (national, regional or plan-specific); *Benjamin* turned on this.
- Do not use Model 2 at a level where the plan's target for that group is already met; check RS11 before each vacancy.

Module C — Driving roles and AARTO

Module C opens when Gate C is answered "yes": the appointee will drive or control a vehicle for the employer (company, pool, hired or own vehicle on business). It decides whether driving is inherent, what may be checked and when, what may and may not be used to reject, and how the appointee is made ready to be nominated as a driver under AARTO before the first trip.

The legal frame.

- **AARTO rollout.** In force since 1 July 2026 in 62 municipalities under Proclamations 322 and 323 of 2026 (GG 54917 and 54918, 29 June 2026) and the AARTO Regulations, 2026. Elsewhere the Criminal Procedure Act regime continues. Phase 3 (about 151

further municipalities) has not been proclaimed; no proclamation had been gazetted as at 19 October 2026. On 4 August 2026 the RTIA told Parliament it expects Phase 3 in March 2027 (an earlier RTIA annual performance plan had pointed to October–December 2026). Until a proclamation is gazetted, only the 62 municipalities in Annexure A to Proclamation 323 of 2026 follow AARTO. Map the role's routes against Annexure A (GBS AARTO flow step 0.8).

- **Demerit system not in force.** Sections 24–28 (points, suspension, cancellation) and the rehabilitation programme were excluded from the proclamations and are expected in a later phase with no date set. No demerit points may be used in recruitment. Section 33 (employer checking a person's demerit status with written permission on AARTO 27) is of no practical use until points exist.
- **Owner and operator duties.** An owner or operator who allows a person to drive or control a vehicle must first obtain the driver's full names, identity document, and residential, postal, business and email addresses (AARTO Act s.17(5)). These particulars make a nomination within 32 days possible (s.17(1)(f)(v), s.17(4)). The duty is law only in AARTO municipalities; apply it everywhere as policy so that drivers can be nominated wherever a notice is issued. Onboarding steps C.9–C.11 deliver them (GBS AARTO flow steps 0.5–0.7).
- **Enforcement orders.** Until an enforcement order is complied with or revoked, no driving licence, PrDP, permit or licence disc may be issued to the person (AARTO Act s.20(5)). An outstanding order can therefore stop a driver renewing a licence or PrDP. Unpaid infringement notices and courtesy letters do not have that effect on their own. A PrDP is valid for 24 months (NRTR reg 122(1)).
- **National Road Traffic Act 93 of 1996.** A driving licence of the correct code is required to drive; a Professional Driving Permit is required for specified vehicles and purposes (goods vehicles above prescribed masses, passenger-carrying and dangerous goods) and must be renewed every 24 months with medical fitness (NRTR reg 122(1)). Licence authenticity and validity are verified on eNaTIS, directly where the employer has access or through an accredited vendor or DLTC.
- **POPIA.** Licence and PrDP data are personal information; criminal driving convictions are special personal information (s.26); AARTO infringements are administrative, but treat them with the same care. Lawful basis: steps linked to concluding the contract at the candidate's request (s.11(1)(b)) and legitimate interest (s.11(1)(f)) for licence and PrDP verification; written consent (RS52) for AARTO portal and conviction checks; legal obligation (s.11(1)(c)) for the s.17(5) particulars at onboarding. Notice under s.18 at collection.
- **Proportionality and equality.** Driving requirements in a job that does not need them disadvantage groups less likely to hold licences and may be indirect discrimination (EEA s.6(1)); they are justified only as inherent requirements (s.6(2)(b)).



What may and may not be used

Information	May it be used to reject?	Conditions
No valid licence of the required code, or no required PrDP	Yes, where driving is inherent	Unless a licence or PrDP will be obtained before the start date and the policy allows a conditional start in a non-driving capacity
Licence suspended or cancelled	Yes, where driving is inherent	Verify on eNaTIS; put the finding to the candidate first (3.7)
Outstanding AARTO enforcement order	Not on its own; it becomes an offer condition	Must be resolved (paid or revoked) before start, because it blocks licence and PrDP issue (s.20(5))
Unpaid infringement notices or courtesy letters	No	Not findings of fault; may be on vehicles registered to the candidate but driven by others
Demerit points	No	System not in force
Convictions for serious driving offences (for example driving under the influence, reckless or negligent driving causing harm)	Possibly, by relevance	Through the criminal-record check with consent; assess nature, recency and link to role; never a blanket bar
Driving history for a non-driving role	No	Disproportionate (POPIA s.10); risk of indirect discrimination
Practical driving assessment	Yes, as a scored work sample	Standardised route and qualified assessor; same for all candidates

Step table

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
C.1 Identify the driving role	Job analysis (1.5).	Record frequency, vehicle type and mass, passengers or dangerous goods, routes and municipalities, own-vehicle use.	LM, FM	Day 5 (BP)	RS12; RS51	BP



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
C.2 Inherent-requirement decision	C.1 complete.	Decide whether driving is inherent (the job cannot be done without it) or incidental (could be reallocated or done by other transport). Record licence code and PrDP category only if inherent. Consider reasonable accommodation for disability.	LM, FM, TA	Day 5 (BP)	RS51	EEA s.6(2)(b); Disability Code
C.3 Gate C and advert	Step 1.11.	Gate answered; advert states the licence and PrDP requirement and the final-stage checks, and that traffic fines alone do not disqualify.	TA, FM	Day 8–10 (BP)	RS60; RS15	POPIA s.18
C.4 Screening	Applications screened.	Self-declared licence code and PrDP scored Met / Not met; no documents yet.	TA	With 3.1	RS19	POPIA s.10
C.5 Notice and consent	Final candidates.	Give the driver-record notice and obtain written consent for licence, PrDP, AARTO-status and conviction checks; explain purpose, sources (eNaTIS, AARTO portal, SAPS), retention and the right to decline.	TA	At final stage	RS52	POPIA ss.11, 18, 26–27
C.6 Verify licence and PrDP	Consent given.	Inspect the card and PrDP; verify on eNaTIS or through a vendor: code, validity, restrictions, endorsements, suspensions. Optional practical assessment (3.11).	FM, VV	Within 5 working days (BP)	RS53	NRTA; POPIA
C.7 AARTO status	Consent given.	Check for outstanding enforcement orders against the candidate on the AARTO portal (with consent) or by candidate disclosure with a portal extract. Record infringements only as context.	FM, ACO	With C.6	RS53	AARTO Act s.20(5)
C.8 Offer conditions	Approval.	Offer conditional on a valid licence and PrDP at start and on any enforcement order being resolved before start; adverse findings put to the candidate first (3.7).	TA	With 5.1	RS31	CL: *Wyeth*; POPIA s.24
C.9 Driver particulars	Before first authorisation to drive.	Capture full names, ID, residential, postal, business and email addresses, licence and PrDP details and copies into the Employee Drivers Register (AARTO G02).	HR, FM	Before first drive	RS54; G02	AARTO Act s.17(5) (AARTO municipalities; BP elsewhere)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
C.10 Vehicle allocation and contracts	Before first drive.	Allocation and trip-log rules (G03); driver agreement clauses: report notices the same day, cooperate with nomination, accept re-issued notices; deduction consent limited to specific debts (G10); notice that demerit status may be checked once points commence, with a signed AARTO 27 for each check or consent period (s.33(2); GBS AARTO flow D3).	FM, HR, LA	Before first drive	RS54; G03; G10	AARTO Act ss.17, 33; BCEA s.34
C.11 Nomination readiness and monitoring	Employment starts.	Confirm the particulars meet the "acceptable identification" and address requirements for nomination (AARTO flow step 2.2); diarise licence and PrDP expiry; 6-monthly re-verification (BP).	ACO, FM	Start; 6-monthly	RS54	AARTO Act s.17(1)(f)(v)

Integration into the main phases

Phase	Step	What Module C adds
Phase 0	0.5, 0.18	Driving-role list; consent and notice templates; link to AARTO flow
Phase 1	1.5, 1.6, 1.11	Driving recorded at job analysis; licence and PrDP only if inherent; Gate C
Phase 2	2.2	Requirement and checks disclosed in the advert
Phase 3–4	3.5, 3.11, 4.8	Consent; practical assessment; licence, PrDP and AARTO status at final stage
Phase 5	5.1, 5.2, 5.8	Offer conditions; medical fitness for PrDP; driver particulars before first drive
Phase 6	6.8	Driving-role review on each proclamation; demerit readiness

Candidate obligations. Declare licence code and PrDP truthfully; consent to or decline the checks; disclose any suspension or outstanding enforcement order; resolve enforcement orders before start; provide driver particulars before driving.



Hand-offs. LM → FM (driving analysis). TA → FM (final checks). FM → ACO (AARTO status, particulars). HR → FM (Employee Drivers Register). LA → HR (driver clauses).

Watch-points.

- A licence requirement in the advert for a role that does not drive is the most common driving-related discrimination risk.
- Particulars missing at the first trip expose the organisation under s.17(5) and make the 32-day nomination window impossible to meet.
- TES and contractor drivers need the same particulars before they drive; put it in the TES agreement.
- When Phase 3 is proclaimed, update the jurisdiction map; when demerits commence, update RS51–RS54 and this module.

Module D — Use of AI in recruitment

Module D opens when Gate D is answered "yes": any AI or automated tool will source or contact candidates, draft the advert or job description, parse, screen, rank or match applications, run a chatbot, schedule, transcribe or summarise interviews, or score video, game-based or written assessments. It also covers candidates' own use of AI. It links to the **GBS AI Compliance flow** and the **GBS POPIA flow**, both being built in parallel, and to the GBS AI Policy.

The legal frame.

- **POPIA s.71.** A data subject may not be subjected to a decision with legal consequences, or which affects them to a substantial degree, based solely on automated processing intended to profile them, including their performance at work. The exceptions in s.71(2) (a decision in connection with concluding or executing a contract, or one governed by a law or code that specifies appropriate measures) apply only in limited cases: a contract-related decision is exempt outright only where the data subject's request has been met (s.71(2)(a)(i)), which is never the case for a rejection; otherwise appropriate measures are needed: an opportunity to make representations and sufficient information about the underlying logic (s.71(3)). The safe design is that no tool takes a rejection decision: a human with authority reviews every adverse outcome.



- **Other POPIA conditions.** Notice at collection (s.18), including AI use and cross-border flows; minimality and purpose (ss.10, 13); collection from the candidate unless an exception applies (s.12), which rules out scraping social profiles; retention (s.14); security (s.19); operator contracts with AI vendors (ss.20–21); special personal information such as race, health or biometrics from video analysis (ss.26–33); cross-border transfers to offshore hosts (s.72). Administrative fines up to R10 million (s.109).
- **EEA ss.6, 8 and 11.** An AI tool that infers personality, ability or "fit" is a "similar assessment" that must be valid, reliable, fairly applied and unbiased (s.8); a tool that screens out a designated group disproportionately is indirect discrimination unless justified (s.6); the employer carries the onus (s.11) and cannot pass it to the vendor.
- **No AI statute or guidance.** No binding AI law; the draft National AI Policy (10 April 2026) was withdrawn on 26 April 2026 (verify); no Information Regulator guidance on s.71 or AI as at 19 October 2026.

Use cases and controls

Use	Main risk	Minimum control (BP)	Not permitted
Sourcing and outreach (search, matching, messaging passive candidates)	Collection without notice; proxy filtering; scraping	Use only platform data candidates made available for recruitment; s.18 notice at first contact; no filtering by protected characteristics or proxies	Scraping social profiles; inferring race, age or health
AI-written job adverts and descriptions	Inflated requirements; gendered or exclusionary language; invented legal statements	RS59 review against the job analysis, s.20 equivalents and the EE wording	Publishing unreviewed AI text
CV parsing, screening and ranking	Proxy discrimination (names, schools, addresses, career gaps); solely automated rejection	Rank only against the advertised matrix; human review of every "not met" (RS57); EEA1 data never used	Auto-reject; training on past hires without bias testing
Chatbots	Undisclosed bot; knock-outs on unlawful grounds; inaccessibility	Disclose it is a bot; knock-outs only on advertised minimums with human review; human alternative	Asking about protected characteristics
Video interview analysis	Biometric special personal information; accent and disability bias; weak validity	Avoid facial-expression scoring; if speech content is analysed, consent, alternative format, human scoring	Facial or emotion analysis as a selection input



Use	Main risk	Minimum control (BP)	Not permitted
Game-based or online assessment	EEA s.8; device and connectivity disadvantage	Vendor validity and SA subgroup evidence; accommodations; listed on RS04	Unvalidated sole cut-off
Interview note-takers and summaries	Accuracy; disclosure; retention	Disclose; panel scores remain the record; delete recordings per RS08	Using AI summaries as scores
Candidates' use of AI	Misrepresentation; proxy or deepfake interviews	Published AI-use statement; identity check; live or supervised assessment	Rejecting on an AI-detector score alone

Adverse-impact testing (BP)

For each tool, and at each stage it affects, compare selection rates by race, gender and disability (and age band where relevant). Flag a group whose rate is below four-fifths of the highest group's rate, and confirm with a significance test where numbers allow; with small numbers, pool over several vacancies. The four-fifths rule is a US screening heuristic, not SA law, but it gives a defensible, consistent trigger for the s.8 and s.11 onus. Record the test, the result and the action (RS56): continue, re-weight, re-configure, replace, or stop. Test before first use with vendor or pilot data, then at least annually and whenever the model or configuration changes.

Vendor due diligence (RS55)

Ask every vendor, in writing, before contract: what the tool decides or recommends; the features used and excluded; training data and whether it includes South African data; validity evidence for the stated purpose; adverse-impact results by SA designated groups; explainability for s.71(3) representations; human-override design; data hosting and cross-border transfers; sub-processors; security; retention and deletion; audit and logging; change notification; liability and indemnity. A vendor that cannot answer the validity and adverse-impact questions cannot be used for screening or assessment.

Step table

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
D.1 Register and approve	Before any use (0.19).	Tool on the AI register with purpose, decision points, data, hosting and approval; vendor due diligence complete; operator agreement signed.	AIO, IT, IO, LA	Before use	RS05; RS55	POPIA ss.19–21, 72
D.2 Pre-use bias test	Before first live use, and on model change.	Run the adverse-impact test on vendor or pilot data; record.	AIO, TA, PSY	Before use	RS56	EEA ss.6, 8
D.3 Gate D	Step 1.11.	List the tools for this vacancy and the stage each touches; confirm each is approved.	TA, AIO	Day 8 (BP)	RS60	BP
D.4 AI-drafted advert review	AI used for advert or job description.	Check against the job analysis: no added requirements, s.20 equivalents present, inclusive language, correct EE wording, no invented legal claims.	TA, LM	Before publication	RS59	EEA ss.6, 20
D.5 Notice	Advert and application channels.	AI notice in the advert and privacy notice: what the tool does, that a human decides, how to request an explanation or review, cross-border hosting.	TA, IO	At collection	RS08; RS15	POPIA ss.18, 71(3), 72
D.6 Human review before any rejection	Tool output at screening or assessment.	A trained reviewer checks every adverse outcome against the screening matrix and can override; reviewer, output, decision and reason logged. Sampling of positive outcomes for errors (BP 10%).	TA	Before any regret is sent	RS57	POPIA s.71(1)
D.7 Representations	Candidate asks for an explanation or review.	Give a plain explanation of the logic and the factors; a different reviewer reconsiders; respond within 10 working days (BP).	TA, IO	10 working days (BP)	RS57	POPIA s.71(3)
D.8 Accommodation and alternatives	Candidate requests.	Provide a non-AI or adapted format; record.	TA	Before the assessment	RS18	EEA s.15(2)(c); Disability Code

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
D.9 Selection decision	Calibration and Selection Report.	AI outputs are inputs a human considers, never a separate scored component; adverse-impact check at calibration; the Selection Report names the tools used.	PNL, TA	At 4.6–4.9	RS26; RS28; RS56	EEA s.8; POPIA s.71
D.10 Candidates' use of AI and identity	Throughout.	Publish the AI-use statement (2.11); verify identity at interview; use live structured interviews and supervised work samples to test claims; put suspected misrepresentation to the candidate (3.7).	TA, PNL	Throughout	RS58	NQF Act s.32B; POPIA s.24
D.11 Annual audit	Annually; on change.	Adverse-impact audit across vacancies; vendor review; incident log; report to the board (6.2, 6.10).	AIO, TA, IO	Annually	RS56	EEA s.8(c); POPIA s.19
D.12 Records	Each vacancy.	Keep tool, version, configuration, inputs, outputs, reviewer decisions and representations; retain per RS08; delete video and audio on schedule.	TA, IT	File close	RS57; RS41	POPIA ss.14, 17

Integration into the main phases

Phase	Step	What Module D adds
Phase 0	0.7, 0.8, 0.19	AI register, vendor due diligence, pre-use bias test
Phase 1	1.6, 1.11	AI-drafted specification reviewed; Gate D lists tools
Phase 2	2.2, 2.6, 2.11	Advert review (RS59); AI notice; candidate AI-use statement
Phase 3	3.1, 3.2, 3.8–3.9	Human review before rejection; s.8 compliance for AI assessments; alternatives
Phase 4	4.4, 4.6, 4.9	Identity check; adverse-impact check at calibration; tools named in the Selection Report
Phase 5–6	5.6, 6.2	Access requests for logic; annual audit



Candidate obligations. Use AI only as the AI-use statement allows; ensure CV content is true; complete live assessments personally; ask for a human review if they wish.

Hand-offs. AIO → TA (approved tools). TA → IO (notices, representations). AIV → AIO (bias data, change notices). AIO → BOARD (annual audit).

Watch-points.

- "A human clicks approve" is not meaningful review. The reviewer needs authority, time and the information to disagree, and the log must show that they sometimes do.
- Vendors' bias reports usually use US categories; insist on SA designated-group data or test locally.
- AI tools adopted by agencies on the employer's behalf are the employer's processing; the agency agreement (0.11) must prohibit undisclosed AI screening.
- An AI-drafted advert that adds "5 years' experience" or a degree the job analysis did not require breaches s.20(3)–(5) as surely as a human-drafted one.

Parallel track — disputes, complaints and remedies

This track opens on the day the advert is published and runs until the last referral window closes for every candidate who could claim. Its events are triggered by candidates, employees, regulators or inspectors, not by the vacancy timetable. Statutory periods are calendar days; under CCMA Rules (2023) rule 3 the first day is excluded and the last included, and a last day on a Saturday, Sunday or public holiday moves to the next working day.



Event	Who	Trigger	Organisational action	Deadline	Form	Authority
P1 Unfair discrimination claim	Applicant or employee	Alleges discrimination in criteria, questions, tests, AI tools, checks or the decision.	Brief LA; assemble the file (EE plan, RS14, RS49, RS60, screening matrix, RS57, score sheets, Selection Report, reasons). Employer carries the onus on a listed ground.	Refer to CCMA within 6 months; arbitration by consent, where sexual harassment is alleged, or where the applicant earns below the threshold (s.10(6)); otherwise Labour Court	RS41	EEA ss.10, 11; CL: *Moses Kotane*
P2 Unfair promotion (ULP)	Internal candidate only	Alleges an unfair process or irrational decision.	Show policy compliance, the Selection Report and reasons engaging with the panel; any deviation approved and recorded. Remedies: up to 12 months' compensation; protected promotion; instatement rarely.	Refer within 90 days	RS28; RS30; RS48	LRA ss.186(2)(a), 191(1)(b)(ii), 193(4), 194(4); CL: *Benjamin*
P3 Retracted offer	Candidate who accepted	Offer withdrawn after acceptance (including visa or licence condition failing).	Show the condition and the finding; if the candidate was an "employee", treat as a dismissal claim.	30 days from dismissal or the later final decision	RS31; RS32	CL: *Wyeth*; LRA s.191(1)(b)(i)
P4 Testing claim	Applicant or employee	Medical, psychological or AI assessment not justified, biased or not s.8-compliant.	Produce the justification, RS04 and RS55 entries, practitioner details and adverse-impact evidence (RS56).	As P1	RS04; RS23; RS56	EEA ss.7, 8, 11

Event	Who	Trigger	Organisational action	Deadline	Form	Authority
P5 POPIA complaint	Candidate	No notice, excessive checks, undisclosed AI tool, solely automated decision, scraping, cross-border transfer, retention exceeded.	IO responds with notices, consents, RS57 human-review log, vendor agreement and retention schedule.	Per Regulator notice	RS05; RS08; RS57	POPIA ss.71, 72, 74, 109
P6 PAIA / POPIA access request	Candidate	Requests records of the process or the logic of an automated decision.	Disclose own records; protect others' information and scores; explain logic.	30 days; one 30-day extension	RS34	PAIA ss.50, 56, 57; POPIA ss.23, 71(3)
P7 Fixed-term or TES deeming	Placed or fixed-term worker	Claims indefinite employment or equal treatment.	Show the s.198B reason, placement record and comparison.	Per referral	RS36; RS37	LRA ss.198A, 198B, 198D
P8 Labour inspection	DEL inspector	EE, BCEA, NMW or ESA inspection.	Produce the EE plan, reports, records, right-to-work files (RS43, RS47).	Per notice	RS41; RS47	EEA ss.35–37; BCEA ss.64–69; ESA
P9 EE review by the Director-General	DEL	Review of compliance, including targets.	Produce the Reg 16(5) evidence file and deviation register.	Per notice	RS14; RS48–RS50	EEA ss.42–45
P10 Misrepresentation discovered after hire	Employee	Qualification, licence, visa or history found false.	GBS Misconduct flow (dishonesty); consider an NQF Act s.32B complaint.	Promptly	Misconduct flow	NQF Act s.32B; Code: Dismissal 2025



Event	Who	Trigger	Organisational action	Deadline	Form	Authority
P11 Protected disclosure about the process	Employee	Reports irregular appointment, nepotism or unlawful foreign employment.	GBS PDA flow; no occupational detriment.	Per PDA flow	PDA flow	PDA ss.3, 6
P12 Immigration inspection or enquiry (new)	DHA immigration officer	Inspection of premises or records; enquiry about a foreign employee.	LA leads; produce RS43, RS46, RS47 and verification proof (s.38(2) good-faith record); stop any unauthorised work.	Per notice	RS43; RS47	Immigration Act ss.38, 49
P13 Challenge to an AI-assisted outcome (new)	Candidate	Representations under s.71(3), or a complaint of AI bias.	D.7 review by a different person; explain logic; check the adverse-impact record; correct the decision if wrong.	10 working days (BP)	RS57	POPIA s.71(3); EEA s.6
P14 Driver-check complaint (new)	Candidate	Claims a driver check was unjustified, excessive or misused.	Show RS51 (inherent requirement), RS52 consent, RS53 results and that only permitted information was used.	Per channel	RS51–RS53	POPIA ss.10, 11; EEA s.6

15 / RECRUITMENT AND SELECTION PROCESS

Candidate and employee obligations and conduct

Recruitment is not one-sided. Explain these duties in the privacy notice, the invitation letters and the offer, without using them to discourage applications.



Obligation	Who	When	Consequence if not met	Authority
Give truthful information about qualifications, registrations, licences, right-to-work status and history	Candidates	Application to start	Offence where a qualification is falsely claimed; withdrawal of offer; post-hire dismissal for dishonesty	NQF Act s.32B; Code: Dismissal 2025
Produce a valid visa or permit authorising this work before starting; keep it valid	Foreign nationals	Before start; throughout	May not be employed or must stop work	ESA s.8; Immigration Act s.38
Report changes in visa status, conditions or expiry	Foreign-national employees	Promptly	Unlawful work; disciplinary action	Contract; Immigration Act s.38
Consent to or decline each check, knowing the consequence	Shortlisted candidates	Shortlist	Process continues without the check, or a condition cannot be met	POPIA s.11
Disclose licence suspensions and outstanding enforcement orders; resolve orders before start	Driving-role candidates	Final stage	Offer condition fails	AARTO Act s.20(5); contract
Provide driver particulars before driving	New drivers	Before first drive	Not authorised to drive	AARTO Act s.17(5)
Use AI only as the AI-use statement allows; complete live assessments personally	Candidates	Throughout	Disqualification; misrepresentation	BP; NQF Act s.32B
Respond to adverse findings	Candidates	Within the stated period	Decision on the information available	BP
Request accommodation if wanted	Candidates with disabilities	Before assessment	Assessment proceeds without it	Disability Code item 7.2.1
Keep assessment content confidential	Candidates	After assessment	Disqualification	BP
Declare relationships and interests	Panel members, managers	Before seeing CVs	Recusal; disciplinary action	BP
Refer disputes in time	Candidates and employees	EEA 6 months; ULP 90 days; dismissal 30 days	Condonation needed	EEA s.10; LRA s.191



Rights the organisation must not obstruct. To apply and be considered against job-related criteria; freedom from unfair discrimination on any listed or arbitrary ground, including nationality where unjustified; to decline to disclose EE status, disability or health beyond inherent requirements; to reasonable accommodation, including a non-AI format; to know what personal information is collected, why, by whom and by what tools, and to access and correct it; not to be subject to a solely automated decision, and to make representations about an automated outcome; not to have driving records checked for a non-driving role; to join a union; to a fair promotion process (employees); to refer disputes.

Hand-offs, RACI and interfaces register

RACI matrix

R = Responsible, A = Accountable, C = Consulted, I = Informed.

Activity	LM	TA / HR	EEM	Panel	EE forum	DA	LA / IMM	FM	AIO / IO
Requisition and Impact Note	R	R	R	–	I	A	–	–	–
Job analysis and specification	R	A	C	–	–	I	C	C (driving)	C (AI drafting)
Designation decision	C	R	R	–	C / I	A	C	–	–
Variable gates (RS60)	C	A / R	R (B)	–	–	I	R (A)	R (C)	R (D)
Advert and channel plan	C	A / R	C	–	I	I	C	C	C
Privacy notices and retention	–	R	C	–	–	I	C	C	A (IO)
Screening and long-list	C	A / R	C	–	–	–	–	–	C (tool review)
Right-to-work verification	–	R	–	–	–	I	A	–	–

Activity	LM	TA / HR	EEM	Panel	EE forum	DA	LA / IMM	FM	AIO / IO
Driver checks	–	R	–	–	–	–	C	A	C (IO)
AI tool approval and audit	–	C	C	–	I	I	C	–	A / R
Interviews and scoring	R	A (process)	C / R	R	–	–	–	–	–
EE sign-off or deviation	–	C	R	C	I	A (per tier)	C	–	–
Final approval	C	C	C	–	–	A / R	–	–	–
Offer and contract	C	A / R	–	–	–	I	C	C	–
Onboarding (drivers, visas)	C	A	–	–	–	–	R (visa)	R (drivers)	–
Reporting and monitoring	I	R	A	–	C	I	C	C	C

Interfaces register

Send the minimum information needed, keep proof of what was sent, to whom and when, and record it on the file.

Party or system	Trigger	What is handed over	When	Step	Authority
EE / consultative forum	Preferential designation; quarterly	Designation notice; funnel data; deviation register	Phase 1; quarterly	1.10, 6.1, B.13	EEA ss.16, 17
Talent committee	Succession-linked post	Successor record	Phase 1	1.4, 1.10	BP
Private employment agency / TES	Agency or TES used	Brief; matrix; POPIA operator terms; right-to-work and AI rules	Before release	2.3, 0.11	ESA ss.13–15; POPIA s.21
DEL / ESSA portal	Advert; local search	Vacancy posting	Phase 2	2.1, A.3	ESA
Department of Home Affairs	Foreign national	Visa verification request; asylum employment letter; termination reports	Phase 3–5; start + 14 days	A.5, A.9, A.10	Immigration Act s.38; Refugees Act s.22(9)



Party or system	Trigger	What is handed over	When	Step	Authority
Immigration practitioner	Sponsorship	Offer, employer documents, skills-transfer plan	Before offer	A.6	Immigration Act s.19
SAQA / NLRD and institutions	Shortlist	Qualification verification requests	Phase 3	3.6	NQF Act
Professional bodies	Registration inherent	Registration check	Phase 3	3.6	Professional statutes
SAPS / accredited vendor	Final candidates	Fingerprints and consent	Phase 4	4.8	POPIA ss.33, 57
Credit bureau	Certified role	Consent; certification and job description	Phase 4	4.8	NCA Regs regs 18(4)(c), 19(12)
NCPR / NRSO registers	Child-related roles	Enquiry; certificate application	Phase 4	4.8	Children's Act s.126; Sexual Offences Act s.45
eNaTIS / DLTC / AARTO portal	Driving roles	Licence, PrDP and enforcement-order checks with consent	Phase 4	C.6–C.7	NRTA; AARTO Act s.20(5)
Fleet manager and ACO	Driving role	Driver particulars; allocation	Before first drive	5.8, C.9–C.11	AARTO Act s.17(5)
AI vendor	Tool in use	Due-diligence answers; bias data; change notices; deletion	Before use; annually	D.1, D.11	POPIA ss.20–21, 72
Psychologist / psychometrist	Assessments	Battery, accommodations	Phase 3	3.10	Health Professions Act
Occupational health practitioner	Post-offer medical	Inherent requirements; consent	Phase 5	5.2	EEA s.7
Payroll / SARS / UIF / COIDA / funds	Contract signed	Onboarding data	Phase 5	5.7	Tax, UIF and COIDA statutes
Information Regulator	Complaint	Response bundle	On notice	P5	POPIA
CCMA / Labour Court	Dispute	Recruitment file	On referral	P1–P3	EEA s.10; LRA s.191



Adjacent GBS flows. Performance Management (job profiles, succession register; steps 0.5–0.6); Employment Equity (plan, EEA2/EEA4, Reg 16(5)); **AARTO** (driver particulars, allocation, contracts — steps 0.5–0.7, nomination step 2.2; Module C); COIDA (step 5.7); Misconduct (post-hire misrepresentation, P10); Incapacity (probation, step 5.10; lapsed status, A.11); PDA (P11); Operational Requirements and Forms Pack (re-employment preference register, to be checked before external advertising of a comparable post); Off-Boarding (termination of foreign employees and DHA reporting); OHSA (fitness for driving and machinery); **GBS POPIA flow** and **GBS AI Compliance flow** (being built in parallel; Module D); **GBS Foreign National Compliance flow** (planned once B16-2026 is final; Module A).

Forms register

Sixty forms support the flow. RS01–RS42 are carried over from v1 (some updated); RS43–RS60 are new in v2.0. Statutory forms (EEA1, EEA2, EEA4, UIF declarations, Refugees Regulations Form 6, AARTO forms) are prescribed; everything else is a GBS template. RS17 is intentionally unused: the statutory EEA1 is used in its place.

Form	Name	Used at	Statutory?	Existing GBS link
RS01	Recruitment and selection policy (updated: gates, deviation route, sponsorship, driving roles, AI)	0.3, 6.9	No	Policy Interaction Matrix; GBS AI Policy
RS02	Delegation of authority matrix (updated: deviation tiers, sponsorship, AI tool approval)	0.4, B.10	No	—
RS03	Designated status, sector identification and EE plan extract	0.1–0.2, B.1	No (EEA17 proposed, DRAFT)	EE flow (planned)
RS04	Assessment tool register	0.7, 3.8, 6.2	No	—
RS05	ATS / AI tool register	0.8, 0.19, D.1	No	GBS AI Compliance flow
RS06	Agency and TES service agreement schedule (updated: right-to-work, AI, drivers)	0.11, 2.3, 5C.1	No	—

Form	Name	Used at	Statutory?	Existing GBS link
RS07	Credit-check qualifying roles certification	0.10	No (certification under NCA reg 19(12))	—
RS08	Candidate privacy notice and retention schedule (updated: AI, drivers, visas)	0.9, 2.6, D.5	No	GBS POPIA flow
RS09	Succession / talent register extract	0.6, 1.4	No	Succession flow (planned)
RS10	Requisition form	1.1–1.2, 1.12	No	—
RS11	Vacancy EE Impact Note	1.3, B.2	No	—
RS12	Job analysis record (updated: driving tasks)	1.5, C.1	No	—
RS13	Job description and person specification	1.6–1.7	No	—
RS14	Designation Decision Record (updated: model and deviation tier)	1.9–1.10, 3.3, B.5	No	—
RS15	Advert, channel plan and EE statement templates	0.13, 2.1–2.4	No	—
RS16	Application register and acknowledgement (L1)	2.9–2.10	No	—
EEA1	Employee / applicant EE self-declaration	2.7	Yes	—
RS18	Accommodation request	0.12, 2.8, D.8	No	—
RS19	Screening matrix	3.1–3.4, A.4, C.4	No	—
RS20	Consent to verification checks (L4)	0.10, 3.5	No	—
RS21	Verification log and adverse-finding letter (L5)	3.6–3.7, 4.8	No	—
RS22	Assessment invitation and accommodation offer (L2)	3.9	No	—
RS23	Assessment report cover	3.10	No	—



Form	Name	Used at	Statutory?	Existing GBS link
RS24	Panel constitution and conflict-of-interest declaration	4.1–4.2	No	Misconduct chairperson independence
RS25	Structured interview guide, BARS score sheet and invitation (L3)	4.3–4.4	No	—
RS26	Competency profile, weighted scoring matrix and calibration record	1.8, 3.11, 4.5–4.7	No	—
RS27	Structured reference template	4.8	No	—
RS28	Selection Report (updated: tools used)	4.9	No	—
RS29	EE sign-off	4.10	No	—
RS30	Approval with reasons	4.11	No	—
RS31	Conditional offer letter (L6) (updated: visa and driving conditions)	5.1, A.7, C.8	No	—
RS32	Withdrawal of offer (L7)	5.3	No	—
RS33	Regret letters: external (L8) and internal (L9)	5.5	No	—
RS34	Feedback log and PAIA / POPIA request log	5.5–5.6, P6	No	—
RS35	Employment contract and BCEA s.29 particulars (L10)	5A.1–5A.2	Content prescribed by BCEA s.29	AARTO contract clauses
RS36	Fixed-term justification memo and contract	5B.1–5B.3	No	—
RS37	TES placement schedule and deeming tracker	5C.1–5C.3	No	Op Req TES checklist
RS38	Foreign-national right-to-work and local-search record (v1; superseded by RS43–RS44)	—	No	—
RS39	Onboarding checklist	5.7–5.9	UIF declarations prescribed	COIDA registration
RS40	Development plan (Model 3) and probation review record	5A.2, 5.10	No	Incapacity I09
RS41	Per-vacancy compliance checklist and file index	1.12, 5.11, P1	No	—



Form	Name	Used at	Statutory?	Existing GBS link
RS42	Funnel, adverse-impact and retention dashboard	6.1–6.2, 6.10	No (feeds EEA2 / EEA4)	EE flow (planned)
RS43	Foreign-national gate and right-to-work verification record (with DHA verification proof)	A.1, A.4–A.6, 3.6	No	Foreign National flow (planned)
RS44	Local-search and labour-market record	2.5, A.3	No	—
RS45	Skills-transfer plan	A.6, A.8	No (required for ICT visas)	—
RS46	Asylum-seeker employment letter (Refugees Regulations Form 6)	A.9	Yes	—
RS47	Foreign-national register: visa conditions and expiry tracker	A.10–A.11, 6.7	No	Off-Boarding flow
RS48	EE Deviation Motivation and approval	4.10, 4.12, B.9–B.10	No	—
RS49	Pool-availability analysis	1.9, B.4, B.6–B.7	No	—
RS50	EE deviation register (feeds EEA2 and Reg 16(5) file)	B.11–B.14, 6.4	No	EE flow (planned)
RS51	Driving-role determination and inherent-requirement record	0.18, C.1–C.2	No	AARTO G18 jurisdiction map
RS52	Driver-record notice and consent	3.5, C.5	No	AARTO 27 (statutory, for demerit checks)
RS53	Licence, PrDP and AARTO-status verification log	4.8, C.6–C.7	No	AARTO G15 sweep
RS54	Driver onboarding pack	5.8, C.9–C.11	No	AARTO G02, G03, G10
RS55	AI vendor due-diligence questionnaire	0.19, D.1	No	GBS AI Compliance flow
RS56	AI adverse-impact test record	4.6, 6.2, D.2, D.11	No	—
RS57	Human-review and s.71 representations log	3.2, D.6–D.7	No	GBS POPIA flow
RS58	Candidate AI-use statement and integrity declaration	2.11, D.10	No	—



Form	Name	Used at	Statutory?	Existing GBS link
RS59	AI-assisted advert and job-description review checklist	2.2, D.4	No	—
RS60	Variable Gates Record (Gates A–D)	1.11	No	—

Timeline calendar and liability register

Internal targets are best practice, counted in working days from the requisition (day 0). Statutory periods are calendar days, excluding the first and including the last (Interpretation Act 33 of 1957 s.4; CCMA Rules rule 3 for CCMA referrals).

Vacancy calendar (working days from requisition, BP)

When	Event	Owner	Authority	Type
Day 0	Requisition raised	LM	—	BP
By day 3	Impact Note and succession check	EEM, TA	Reg 9	BP
By day 5	Job analysis (including driving) and person specification	LM, TA, FM	EEA s.20(3)–(5)	BP
By day 7	Designation Decision Record and pool analysis	EEM, DA	EEA s.15	BP; must precede advert
By day 8	Variable gates signed (RS60); requisition approved	TA, DA	—	BP; must precede advert
Day 10	Advert published; local-search record starts	TA	Code on HR Policies	BP
Day 20	Closing date	TA	—	BP



When	Event	Owner	Authority	Type
Day 25	Screening, human review of tool outputs, long-list; EE pool check	TA, EEM	Reg 16(5)(c); POPIA s.71	BP
Day 25–35	Shortlist checks including right to work; assessments	TA, PSY, LA	EEA s.8; ESA s.8	BP
Day 35–40	Interviews	PNL	—	BP
Day 42	Calibration with adverse-impact check; EE step; final checks including driver checks	TA, PNL, EEM, FM	—	BP
Day 45	Selection Report	CHR	EEA s.11	BP
Day 47–50	EE sign-off or Deviation Motivation and approval; approval with reasons	EEM, approver, DA	CL: *Benjamin*	BP
Day 52	Conditional offer	TA	CL: *Wyeth*	BP
Acceptance + 5	Regret letters and feedback offers	TA	—	BP
Before first drive	Driver particulars and allocation	HR, FM	AARTO Act s.17(5)	Statutory in AARTO municipalities; BP elsewhere
Start	Contract; onboarding; probation; no start without visa	TA, LM	BCEA s.29; ESA s.8	Statutory
Start + 14 days	Asylum-seeker employment letter	TA	Refugees Act s.22(9)	Statutory
Start + 10 working days	File closed; EEA2 movement and deviation register	TA, EEM	EEA s.26	BP

Statutory and regulatory windows

Window	Length	Starts	Authority
EEA unfair discrimination referral	6 months	Act or omission	EEA s.10(2)



Window	Length	Starts	Authority
Unfair labour practice (promotion) referral	90 days	Act or omission, or when the employee became aware	LRA s.191(1)(b)(ii)
Unfair dismissal referral (retracted offer; probation)	30 days	Dismissal or, if later, the final decision to dismiss or uphold it	LRA s.191(1)(b)(i)
TES "temporary service", below threshold	3 months	Placement	LRA s.198A(1), (3)
Fixed-term without justifiable reason, below threshold	3 months	Start of contract	LRA s.198B(3)
Fixed-term severance	> 24 months	Start of contract	LRA s.198B(10)
PAIA response (private body)	30 days, one extension of 30 days	Request	PAIA ss.56, 57
Asylum-seeker employment letter	14 days	Start of work	Refugees Act s.22(9)
Asylum work endorsement lapses without employment	6 months	Endorsement	Refugees Act s.22(11)
AARTO nomination of driver	32 days	Service of the infringement notice	AARTO Act s.17(1)(f)(v)
AARTO enforcement order compliance	32 days	Service of the order	AARTO Act s.20 (GBS AARTO flow 4.7)
EE report, 2026 cycle	Online close 15 January 2027 (manual closed 1 October 2026)	Opened 1 September 2026	EEA s.21
s.53 compliance certificate	12 months, or until the next s.21 report is due if later	Issue	EEA s.53(6); Reg 16(7)
Retention: EE plan and supporting records	At least 5 years	Expiry of the plan	EEA s.26; EE Regulations, 2025
Retention: foreign-national records	2 years	End of employment	Immigration Act s.38(4)
Retention: unsuccessful external candidates	3 years (BP)	Decision	POPIA s.14; Prescription Act s.11
Retention: credit-check consent and job description	3 years	Check	NCR Circular 4 of 2019



Window	Length	Starts	Authority
DRAFT B16-2026 comment deadline	Until 6 November 2026 (16h00)	Call for comment, 18 September 2026	Parliament

Liability register

Exposure	Who is exposed	Consequence	Authority
Unfair discrimination in recruitment, including by AI tools or driving requirements	Employer	Damages and/or compensation; orders to remedy (press reports of *Moses Kotane* refer to damages of about R4.52m; verify the final order)	EEA ss.11, 48, 50
Non-compliance with EE plan, reporting or target duties	Designated employer	Maximum fines R1.5m rising to R2.7m for repeats (ss.16, 19, 22, 24–26, 43(2)); for ss.20, 21, 23 and 44(b) the greater of those amounts or 2% rising to 10% of turnover; loss of s.53 certificate	EEA Schedule 1; s.53
Rigid or unreasoned use of targets in promotion	Employer	Up to 12 months' compensation (CL: *Benjamin*)	LRA ss.186(2)(a), 194(4)
Withdrawing an accepted offer without a stated condition	Employer	Unfair dismissal compensation up to 12 months	CL: *Wyeth*; LRA s.194
Unlawful processing (notice, checks, AI, scraping, cross-border, retention)	Employer	Enforcement notice; administrative fine up to R10 million; civil damages	POPIA ss.95, 99, 109
Credit check for a non-certified role	Employer; agency	NCA Regulations contravention; NCR action	NCA Regs regs 18(4)(c), 19(12)
Employing a foreign national without authorising status, or outside its terms	Employer and responsible persons	First conviction: fine or up to 1 year; second: up to 2 years or a fine; third or later: up to 5 years without the option of a fine	Immigration Act ss.38, 49(3); ESA ss.8–9
Failing to submit, or falsifying, an asylum-seeker employment letter	Employer	Fine up to R20 000	Refugees Act s.22(10)



Exposure	Who is exposed	Consequence	Authority
Proposed: breach of local-search, quota or record duties	Employer	DRAFT: R100 000; R200 000 repeat within 3 years; greater of R1m or 10% of turnover	DRAFT B16-2026
Employing a listed person in a role with children or persons with mental disabilities	Employer	Offence; Sexual Offences Act: fine and/or up to 7 years	Children's Act s.126; Sexual Offences Act s.45(3)
Allowing a person to drive without obtaining particulars	Owner or operator	Prescribed penalty; cannot nominate within 32 days; liability for the infringement	AARTO Act s.17(5) (AARTO municipalities)
Employing a child under 15 or under the minimum school-leaving age, or in work inappropriate for their age	Employer	Criminal offence	BCEA s.43(1)–(3)
Deemed indefinite employment	Client employer	Indefinite employment; equal treatment; severance	LRA ss.198A(3), 198B(5), (10)
False qualification claim	Candidate	Fine and/or up to 5 years' imprisonment	NQF Act s.32B

What changed from v1

Area	v1 (30 September 2026)	v2.0 (19 October 2026)
Title and scope	Organisational Recruitment and Selection Process Flow	Recruitment, Selection and Assessment Process Flow; adds four variable gates and modules
Master flow	Phases 0–6 and three designation paths	Adds step 1.11 Variable Gates (RS60), gate decision tree (Figure 2) and a swimlane with module lanes
Phase 0	Steps 0.1–0.15	Adds 0.16 right-to-work procedure, 0.17 deviation governance, 0.18 driving-role framework, 0.19 AI register and vendor due diligence

Area	v1 (30 September 2026)	v2.0 (19 October 2026)
Foreign nationals	Step 2.5 and Track 5D (3 steps); several "(verify)" items	Module A: 12 steps, status and visa table, Refugees Act s.22(8)–(11) duties, points system, Critical Skills List (GN R3934, 2023), Trusted Employer Scheme, DHA verification, lapse handling; B16-2026 readiness note; planned standalone flow
B16-2026	"Would reach digital labour platforms"	Corrected: platform deeming provisions were removed from the Bill as introduced; proposed s.12A–12E and s.49A summarised
EE targets and deviations	Deviation Motivation as one step (4.10)	Module B: deviation definition, approval tiers by level, evidence standard, pool analysis (RS49), deviation register (RS50), forum reporting, EEA2 link; court-challenge status table (BUSA and DA challenges added)
ConCourt date	10 March and 22 May 2026, CCT 86/26	Reported refusal of leave late May–1 June 2026; CCT number not re-verified
Driving roles	Verification row and step 5.8	Module C: inherent-requirement test, may/may-not-use table, consent and POPIA basis, eNaTIS and AARTO status, enforcement-order condition, onboarding linked to AARTO flow 0.5–0.7; AARTO rollout re-verified
AI	Step 0.8 and 3.2	Module D: use-case controls, s.71 design, vendor due diligence (RS55), adverse-impact testing (RS56), human-review log (RS57), AI-drafted adverts (RS59), candidates' use of AI (RS58)
Credit checks	"NCA Regs reg 18(4)(c)"	Reg 18(4)(c) confirmed and reg 19(12) certification added; NCR Circular 4 of 2019 retention
Child-protection registers	"Children's Act s.126 (verify)"; "Sexual Offences Act s.41 (verify)"	Children's Act ss.123, 126; Sexual Offences Act ss.41, 45 (certificate before employing; up to 7 years)
POPIA s.57	"s.57 (verify)"	s.57(1)(b) confirmed
PAIA	"30 days (verify)"	30 days plus one 30-day extension (ss.56–57) confirmed



Area	v1 (30 September 2026)	v2.0 (19 October 2026)
NQF Act	"in force 13 October 2023, reportedly"	Confirmed by SAQA: commenced 13 October 2023 except s.32A(1) and two other provisions
Immigration Act s.38	"(verify)"	s.38(1)–(5) confirmed, including the s.38(4) two-year record and termination-reporting duty; s.49(3) penalty terms stated
EE reporting	Manual deadline "verify"	Manual 1 October 2026 (closed); online 15 January 2027
Dismissal period	30 days from dismissal	30 days from dismissal or the later final decision (LRA s.191(1)(b)(i))
Disputes	P1–P11	Adds P12 immigration inspection, P13 AI challenge, P14 driver-check complaint
Forms	RS01–RS42	RS43–RS60 added; RS38 superseded by RS43–RS44; RS01, RS02, RS05, RS06, RS08, RS12, RS14, RS28, RS31 updated
Interpretation points	Ten	Fourteen (deviations, right to work, driving checks, undocumented workers)

Source review, drafting issues and sources

Points re-verified for v2.0 (searches on 19 October 2026)

Point	Position used
BCEA threshold	R269 600.90 a year from 1 May 2026 (GBS confirmed fact)



Point	Position used
National minimum wage	R30.23 an hour from 1 March 2026 (DEL announcement; Acts Online, February 2026); EPWP and learnership rates not re-verified
Code of Good Practice: Dismissal, 2025	GN 3470, GG 53294, in force 4 September 2025; probation items 14–18 (consistent with the GBS Incapacity and Misconduct flows)
CCMA Rules	Rule 3: calendar days; first excluded, last included; weekend or public-holiday last day moves to the next working day
EE targets litigation	Part A dismissed (HC 28 August 2025); leave refused HC (16 October 2025), SCA (13 March 2026), ConCourt (reported 1 June 2026); Part B, BUSA and DA challenges pending; no suspension
Benjamin	LC, June 2026; Bowmans (3 July 2026): 12 months' compensation; targets a "neutral factor"
Critical Skills List	GN R3934, GG 49402, 3 October 2023; no 2026 list
Points-based visas	Third Amendment of the Immigration Regulations, 9 October 2024; Trusted Employer Scheme (Directive 10 of 2024)
Refugees Act ss.22, 27	s.22(6) and (8) endorsement and its limits; s.22(9) 14-day letter; s.22(10) R20 000 fine; s.22(11) 6-month revocation; s.27(f) refugees may seek employment (Acts Online)
B16-2026	Introduced June 2026; comment until 6 November 2026; s.12A–12E, s.49A, tiered penalties; platform deeming removed
AARTO	Proclamations 322–323 of 2026; 62 municipalities from 1 July 2026; Phase 3 not proclaimed (RTIA to Parliament, 4 August 2026: March 2027; earlier RTIA plan: October–December 2026); demerits not commenced; aligned with GBS AARTO flow v1.1
NCA credit checks	Reg 18(4)(c) and reg 19(12) (NCR Circular 1 of 2019); NCR Circular 4 of 2019
NQF Act	Commenced 13 October 2023 except s.32A(1) and two other provisions (SAQA, November 2023)
Sexual Offences Act s.45	Employer must apply for a certificate before employing; offence up to 7 years
AI	No AI statute; draft National AI Policy published 10 April 2026 and withdrawn 26 April 2026 (DLA Piper, 4 May 2026); no Information Regulator s.71 guidance found



Items still marked "(verify)"

- AARTO Phase 3: no date can be given until a proclamation is gazetted (RTIA statement of 4 August 2026: March 2027; earlier RTIA plan: October–December 2026).
- Immigration Regulations: DEL letter waiver for points-based general work visas; study-visa hours; exemption-permit validity; Trusted Employer Scheme directive number.
- ESA: whether any s.8(2) regulations impose local-search or skills-transfer duties.
- EE Regulations, 2025: regulation numbers for equal-value provisions (5.4) and Reg 9 sub-regulation references; the GG number for GN 6125.
- BUSA challenge forum; DA challenge status; ConCourt order date and case number.
- Cases: *Hlope* (LC 2024), *Reynhardt v UNISA* (LAC 2010), *SAPU obo Singh v SAPS* (secondary sources only); the LAC's order on damages in *Moses Kotane*.
- Code of Good Practice: Dismissal, 2025 item numbers for probation (14–18, as used in the other GBS flows).
- UIF/UICA onboarding provisions for foreign nationals; NMW EPWP and learnership rates.

Drafting issues in the law worth raising

- **No external validation route for EEA s.8.** Since s.8(d) (HPCSA certification) was deleted with effect from 1 January 2025, no body certifies tests or AI assessments; employers alone carry the s.8(a)–(c) onus, so vendor evidence and local adverse-impact testing (RS55, RS56) are the only proof.
- **POPIA s.71 has no guidance.** Nothing says when human involvement is enough to take a decision out of "solely" automated processing. The Module D safeguards are prudent, not settled.
- **Sectoral targets cover only the four upper levels.** Preference at lower levels still needs plan-based numerical goals; the Regulations do not say how the two interact.
- **Regulation 16(5) evidence has no prescribed form** and no deviation-approval standard. Module B supplies one; the final Code on the EE Plan (DRAFT GN 7719) may fill the gap.
- **B16-2026 and the EEA.** Foreign-national quotas by sector and occupation would sit alongside EE sectoral targets, but the Bill does not say how the two are reconciled for the same vacancy, or whether a foreign national appointed under a quota is a reasonable ground under Reg 16(5).



- **AARTO and recruitment.** The Act gives employers a demerit-check mechanism (s.33, AARTO 27) for a system not yet in force, and no mechanism for checking enforcement orders against a candidate except through consent and the portal.
- **NQF Act s.32A(1) is unproclaimed,** and NCA reg 18(4)(c) does not define "a position that requires honesty in dealing with cash or finances".
- **Unfair labour practice gap for external candidates.** LRA s.186(2)(a) protects only employees.



Validation record — v2.0 (19 October 2026)

Independent second-line review on 19 October 2026 against primary and authoritative sources; GBS approved implementing all findings. 0 Critical, 5 Major, 14 Minor and 3 Improvement findings, all implemented. A separate independent review of v1.0 (19 October 2026; 0 Critical, 5 Major, 16 Minor, 1 Improvement) was then reconciled against this version: 14 of its findings were already resolved here, and the 8 that were not are recorded below as "v1 review #n". Open items are listed at the end of the table and under "Items still marked (verify)".

#	Finding (severity)	Where	Change made
1	AARTO Phase 3 timing misattributed: March 2027 was put down to "other reports and GBS planning" and October–December 2026 to "RTIA planning" (Major)	1 Legal status — AARTO; Module C legal frame; Items still marked (verify)	Aligned with the GBS AARTO flow v1.1: no proclamation gazetted; RTIA told Parliament on 4 August 2026 it expects March 2027; an earlier RTIA plan pointed to October–December 2026; only the 62 Proc. 323 municipalities follow AARTO
2	ESA subsections misdescribed: s.8(2) is a regulation-making power, s.8(4) (not s.8(3)) preserves claims, and s.9(1) bars work outside the permit (Major)	Interpretation point 14; Module A legal frame; verification register; A.5, A.8, A.11; 0.15, 0.16	Rewritten from the Act's text; citations changed to ss.8(1), 8(2), 8(4), 9(1)
3	*Eskom v Solidarity obo Erasmus* stated the reverse of the LAC's outcome: the LAC (5 November 2025) upheld Eskom's appeal and found the target-linked pipeline lawful (Major)	Interpretation point 3; Module B case law; designation table (b)+(c)	Holding corrected with citation [2025] ZALAC 55; lesson reframed as "target-linked, documented, others still able to compete"
4	"Nationality is not a designated-group criterion" is wrong: EEA s.1 limits designated groups to citizens by birth or descent, or naturalised before 27 April 1994 (or later if apartheid prevented it) (Major)	Interpretation point 12; Module A EE interplay; 2.7; Module B deviation table and candidate obligations; Figure 2	Citizenship test stated; permanent residents and post-1994 naturalised citizens treated as non-designated; new deviation row; EEA1 note; Gate B box now says "Designated candidate (EEA s.1)"
5	Outdated citation: "EE Regs 2014 regs 4–7"; the 2014 Regulations were repealed by the EE Regulations, 2025 (Major)	5.4; 1 Legal status — EE	Cites the 2025 Regulations (regulation numbers to verify); repeal noted
6	Sectoral targets cited as GN 6125, GG 52515; the Determination is GN 6124, GG 52514 (GN 6125 is the Regulations) (Minor)	1 Legal status — EE; Module B legal frame	Both instruments cited separately



#	Finding (severity)	Where	Change made
7	Points-based income band misquoted as R650 796 (Minor)	1 Figures in force	Corrected to R650 976 (GN 5448 of 2024)
8	Immigration Act s.38(3)–(5) and s.49(3) left as "(verify)"; record-keeping and termination reporting attributed to the Regulations (Minor)	Module A legal frame; A.10; 0.9; liability register; What changed	s.38(3) stricter standard (more than 5 employees), s.38(4) 2-year records and reporting, s.38(5) presumption, s.49(3) penalties (1 / 2 / 5 years) stated; retention row added
9	Refugees Act citations: s.22(8) limits endorsement rather than granting it; s.27 paragraph unverified (Minor)	Module A legal frame; A.5; status table; re-verified table	s.22(6) and (8) cited; s.27(f) confirmed
10	B16-2026: inferior terms and record retention put in s.12E (they are s.12A(2)(d)–(e)); introduction and comment-call dates imprecise (Minor)	Module A readiness note; timeline windows	Attribution corrected; prior notice GG 54759 (29 May 2026) and call for comment of 18 September 2026 stated; still DRAFT only
11	Reg 16(5) grounds listed only in part and marked "(verify)" (Minor)	Module B evidence list	All seven grounds (a)–(g) listed from the 2025 Regulations
12	*Moses Kotane*: statement that the R4.5m damages award was set aside is not supported; press reports describe an order to pay (Minor)	Module B case law; liability register	Removed; facts restated (gender requirement after interviews, no EE plan); damages marked to verify
13	Blanket AARTO 27 consent at onboarding conflicts with the AARTO flow v1.1 (a signed AARTO 27 per check, s.33(2)) (Minor)	5.8; C.10	Contract gives notice only; AARTO 27 per check once demerits commence
14	AARTO s.17(5) presented as applying everywhere; it is law only in the AARTO municipalities (Minor)	0.15; Module C; 5.8; C.9; timeline; liability register	Scoped to AARTO municipalities, with the same controls kept as BP elsewhere
15	P1 omitted the sexual-harassment route to CCMA arbitration under EEA s.10(6) (Minor)	Parallel track P1	Added
16	Swimlane put the licence, PrDP and AARTO checks in Phase 3, but step 4.8 and C.5–C.7 run them at final-candidate stage (Minor)	Figure 3	Diagram regenerated: checks moved to Phase 4; "Visa re-check before offer" added for the Module A lane



#	Finding (severity)	Where	Change made
17	Gate B in Figure 2 asked only "target at stake", narrower than step 1.11 and Module B (deviation foreseeable on an open post) (Minor)	Figure 2	Diagram regenerated with the full question
18	EE record retention "(verify regulation)" (Minor)	0.9; retention windows	At least 5 years after the plan expires (EE Regulations, 2025)
19	Settled items still flagged "(verify)": draft AI Policy withdrawal, *Pretorius*, PrDP 24 months, ESA ss.13–15 (Minor)	1 Legal status — AI; Phase 0 Watch; Module C; 0.11; interfaces register	Confirmed and tags removed (DLA Piper; CDH; NRTR reg 122(1); ESA)
20	Trusted Employer Scheme value not stated; directive number unconfirmed (Improvement)	Module A legal frame	30 points stated; directive number marked "verify"
21	POPIA s.71(2) exceptions overstated as always needing measures; the contract exception without measures never covers a rejection (Improvement)	Module D legal frame	Clarified
22	Sub-section headings rendered as bold body text, unlike the other GBS flows (Improvement)	Throughout	Converted to Heading 2
v1 review #1	EEA s.8 still described as requiring HPCSA certification; s.8(d) was deleted by the Employment Equity Amendment Act 4 of 2022 with effect from 1 January 2025 (Major)	Interpretation point "Testing is regulated twice"; Drafting issues	s.8(a)–(c) stated as the current test; deletion of s.8(d) noted; drafting issue reworded (no external validation route)
v1 review #8	s.53 certificate criteria incomplete: no finding of unfair discrimination or NMW award in the previous 12 months; validity 12 months or until the next s.21 report (Minor)	6.5; statutory windows	Criteria and validity rule stated (EEA s.53(6); Bowmans)
v1 review #9	s.198B(4) list omitted "specific project" and "non-citizen with a work permit for a defined period"; "exempted work" is a s.198B(2) exclusion (Minor)	5B.1	Full list given; s.198B(2) exclusions stated separately
v1 review #10	Pre-offer medical testing described as prohibited by s.7; s.7(1) is a justification test (Minor)	Selection instruments catalogue	Legal test stated; post-offer timing marked BP



#	Finding (severity)	Where	Change made
v1 review #11	s.20(5) qualifier "unfairly" omitted (Minor)	Interpretation point "Suitably qualified"	Wording corrected
v1 review #12	Child-labour row omitted the school-leaving-age limit and unsuitable work (BCEA s.43(1)–(3)) (Minor)	Liability register	Row and citation corrected
v1 review #18	B16-2026: penalty scope (per employer, proposed ss.12A, 12B(8), 12E) and repeal of ESA ss.8–9 into Chapter 3A not stated (Minor)	Module A readiness note	Scope and repeal added; still DRAFT
v1 review #22	Schedule 1 fines: the turnover alternative applies only to ss.20, 21, 23 and 44(b) (Improvement)	Liability register	Two fine columns distinguished
O1	Open: AARTO Phase 3 date	Module C; 6.8–6.9	Re-map on proclamation
O2	Open: regulation numbers in the EE Regulations, 2025 (equal value; Reg 9 references) and GG number for GN 6125; Dismissal Code probation item numbers	5.4; Phase 1; Module B; 5A.2, 5.10	LA to confirm against the Gazette
O3	Open: *Moses Kotane* damages order; *Hlope*, *Reynhardt*, *Singh* citations; BUSA forum; DA challenge; ConCourt order details	Module B; Phase 4	Verify before citing in advice
O4	Open: DEL letter waiver, study-visa hours, exemption permits, ESA s.8(2) regulations, TES directive number	Module A	Check DHA and DEL sources before use

Sources

- GBS Resourcing — Organisational Recruitment and Selection Process Flow v1 (30 September 2026) and its source framework; GBS AARTO, COIDA, PDA, Misconduct, Incapacity and Operational Requirements flows; GBS work guide.
- Employment Equity Act 55 of 1998 as amended by Act 4 of 2022, s.1 "designated groups" (Acts Online); EE Regulations, 2025 (GN 6125), reg 16(5) and 16(7) (Acts Online, https://www.acts.co.za/employment-equity-act-1998/n6125_16__ee_compliance_certif.php); Determination of Sectoral Numerical



Targets (GN 6124, GG 52514, 15 April 2025); *Eskom Holdings v Solidarity obo Erasmus* [2025] ZALAC 55 (https://www.saflii.org/za/cases/ZALAC/2025/55.html); Cliffe Dekker Hofmeyr (May 2016) on *Pretorius*; Daily News (28 May 2026) on *Moses Kotane*; Codes on HR Policies and on Disability; BusinessTech (23 March 2026), IOL (1 June 2026) and Moonstone and EWN (September 2025) on the court challenges; Bowmans (3 July 2026) on *Benjamin*; ClearComply (April 2026) and SERR on EE reporting dates.

- Immigration Act 13 of 2002, ss.38 and 49(3) (Acts Online, https://www.acts.co.za/immigration-act-2002/38__employment); Points-Based System, GN 5448 of 2024 (https://lawlibrary.org.za/akn/za/act/gn/2024/5448/eng@2024-10-18); Cliffe Dekker Hofmeyr (21 July 2026) on the Trusted Employer Scheme Phase II; Refugees Act ss.22 and 27 (Acts Online); Immigration Regulations, 2014 as amended; GN R3934 (GG 49402, 3 October 2023) via Acts Online and Cliffe Dekker Hofmeyr (16 October 2023); EY (October 2024), Xpatweb (2026), MJK Inc (2026) and Visa Immigration SA (21 August 2026) on the points-based system, Trusted Employer Scheme and visa types; Refugees Act s.22 (Acts Online) and UNHCR South Africa guidance.
- Employment Services Act 4 of 2014, ss.1, 8, 9, 13–15 (Laws.Africa, https://lawlibrary.org.za/akn/za/act/2014/4/eng@2014-04-07); Employment Services Amendment Bill [B16-2026] as introduced (https://static.pmg.org.za/B16-2026_Employment_Services.pdf); Parliament media statement calling for comment, 18 September 2026; Afriwise and Acts Online (June 2026); DLA Piper (2024) on the earlier draft.
- AARTO Act 46 of 1998 as amended; Proclamations 322 and 323 of 2026; JoburgETC (5 August 2026: RTIA briefing to Parliament, Phase 3 expected March 2027); TopAuto (17 September 2026: RTIA 2026/27 annual performance plan); BusinessTech (9 July 2026), Bowmans (6 July 2026) and Sunday Times (July 2026) on the rollout; GBS AARTO Receiving Process Flow v1.1 (19 October 2026); National Road Traffic Regulations reg 122(1) (PrDP validity, Acts Online).
- POPIA; Bowmans (16 September 2026) on AI and POPIA in the workplace; DLA Piper (4 May 2026, https://www.dlapiper.com/en/insights/publications/2026/05/withdrawal-of-south-africa-draft-ai-policy) on the withdrawal of the draft National AI Policy; MJK Inc (July 2026) on AI governance.
- National Credit Regulations; NCR Circulars 1 and 4 of 2019; Experian guidance. NQF Amendment Act 12 of 2019 (SAQA, November 2023). Children's Act 38 of 2005; Criminal Law (Sexual Offences and Related Matters) Amendment Act 32 of 2007 s.45 (Acts Online). DEL and Acts Online on the national minimum wage (February 2026).
- Independent review of v1.0 (19 October 2026): EEA s.8 as amended by Act 4 of 2022 (Acts Online, https://www.acts.co.za/employment-equity-act/8__psychological_testing_and_other_similar_assessments.php); EEA ss.7, 10, 20 (Acts Online); Bowmans on the s.53 compliance certificate (https://bowmanslaw.com/insights/south-africa-unpacking-the-



employment-equity-regulations-2025-6-of-6-obtaining-the-compliance-certificate/); LRA s.198B(4) (Polity); BCEA s.43 (Acts Online); EEA Schedule 1 (worklaw.co.za); B16-2026 clauses 3 and 12 (PMG).
- Sackett, Zhang, Berry & Lievens (2022), *Journal of Applied Psychology* 107(11), on selection-method validity.
- The LRA, BCEA, PAIA, NRTA, Health Professions Act, Prescription Act and the cases named are cited from the v1 framework and general knowledge where not listed above; verify wording, citations and later authority before use.

This flow is a working document for legal review, not legal advice.

